
MAYFLOWER REPORTS

2

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MAYFLOWER OFFICIAL REPORTS

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CASES ADJUDGED

IN

THE SUPREME COURT

IN

JANUARY TERM, 2025

WHOLE TERM

JANUARY 1, 2025, THROUGH DECEMBER 31, 2025

Reported by Brenda Popplewell† and Justice Khaled††
Mayflower Independent Reporter



BY APPOINTMENT TO THE SUPREME COURT
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ERRATUM

JUSTICES
OF THE
SUPREME COURT

AT THE TIME OF THESE REPORTS

MANDATORYMORALE, *Chief Justice*,
KHALED, *Associate Justice*,
CABOT, *Associate Justice*,
TOTORO, *Associate Justice*,
ALBERTWELLESLEY, *Associate Justice*,
NOMADITY, *Associate Justice*,
GRANDPAGOBIES, *Associate Justice*,
SINGHSKI, *Associate Justice*,
ARTHUR_CHEN, *Associate Justice*.

RETIRED

TURNTABLE, *Chief Justice*.
STICKZA, *Associate Justice*.
DAVID, *Associate Justice*.
XIQAQ, *Associate Justice*.
NOTABLE, *Associate Justice*.

OFFICERS

OXSOFIEE, *Clerk of Court*.

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CASES ADJUDGED

IN THE

SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

No. 01-08

STATE OF MAYFLOWER *v.* TREXEODEVON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[January 22, 2025]

CLARKE, J., announced the judgment of the Court and delivered an opinion in which TOTORO, NOTABLE, and XIQAQ, JJ., join.

Here, the District Court issued a sua sponte dismissal of the petitioner’s criminal case against respondent, claiming a violation of respondent’s Sixth Amendment right to speedy trial. We are asked to decide whether the district court misapplied the standard set in *Barker v. Wingo*, 407 U.S. 514 (1972), in its determination there was a speedy trial violation. We find that the district court misapplied the law, and as such, we reverse.

I

In September 24th, 2024, state prosecutors filed a criminal case against respondent on one felony count of assault with a deadly weapon. Pre-trial proceedings ended on October 11th, and prospective trial scheduling began. By the 20th, after three separate prosecutors had been appointed to the matter with no apparent progress on scheduling trial, the district court dismissed the matter with prejudice. *State v. TrexeoDev*, CR-0015-24 (Mayfl. Dist. Ct. 2024).

II

The United States and Mayflower Constitutions guarantee to all criminal defendants the right to a speedy trial. U.S. Const. amend. VI; Mayfl.

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Const. Art. I, § 5. The United States Supreme Court has formed a four-pronged test, known commonly as the *Barker* test, in determining whether a defendant's right to a speedy trial has been violated.

The test makes four separate inquiries: (1) the length of the delay; (2) the reason for the delay; (3) the defendant's assertion of his right; and (4) prejudice to the defendant. *See Barker*, supra at 530. We adopt this same test with respect to the speedy trial right under the Mayflower Constitution.

III

The first factor, the length of the delay, serves as “a triggering mechanism.” *Ibid.* In its balancing test, the Supreme Court dictates that until “there is some delay which is presumptively prejudicial, there is no necessity for inquiry into the other factors that go into the balance.” *Ibid.* The length of the delay remains dependent on the particular circumstances of the matter. The length of delay is also dependent on the nature of the matter, for indeed, the period reasonable for prosecution of an “ordinary street crime” is considerably less than for a complex criminal charge. *Id.*, at 531.

Procedurally, the period of delay is measured from the date formal charges are filed. *United States v. Marion*, 407 U.S. 307, 320 (1971). However, on the merits, length of delay “is the net period of time that may be chargeable to the State or to the court system as true delay.” *Ratchford v. State*, 785 A.2d 826, 829 (2001) (internal quotation marks omitted); *see also United States v. Howard*, 218 F.3d 556, 564 (6th Cir. 2001) (“in calculating the length of the delay, only those periods of delay attributable to the government or the court are relevant to [defendant's] constitutional claim”); *see also State v. Crane*, 784 P.2d 901, 903 (1989) (*citing State v. Wirtala*, 752 P.2d 177, 180 (1988)) (“length of delay refers only to the time period chargeable to the State”).

When finding “presumptive prejudice,” the time between accusation and trial “must [cross] the threshold dividing ordinary from presumptively prejudicial delay.” *Doggett v. United States*, 505 U.S. 647, 651 (1992). Presumptive prejudice simply marks the point at which courts deem the delay unreasonable enough to trigger a *Barker* inquiry. *Id.*, at n. 1. Most specific to this matter, in situations of prosecutorial negligence, presumptive prejudice must have been caused by a prolonged period of negligence in bringing the case to trial. *Id.*, at 654.

The respondent faced one felony count of assault with a deadly weapon, which court discovery records indicate was supported by both video and eyewitness evidence. The district court's final order, in part,

Opinion of the Court

states that as a direct result of the delay in this matter, the defendant's ability to mount an effective defense was impaired. We calculate the actual delay from the time the district court ordered the parties to schedule trial to when it dismissed the matter. In this time, only nine days had elapsed.

While all nine days of delay were attributable to the three separate prosecutors, we are not convinced that considering the totality of the circumstances—the felonious nature of the matter, the type of evidence in the matter, and the length of delay attributable to the government—that there was a delay that presumptively prejudiced the respondent. Therefore, this court may not engage in any further *Barker* inquiries.

IV

Accordingly, we reverse the decision of the district court and remand the case for further proceedings consistent with this opinion.

It is so ordered.

KHALED and MANDATORY, J.J., took no part in the consideration or decision of this case.

CASES ADJUDGED
 IN THE
SUPREME COURT OF MAYFLOWER
 AT JANUARY TERM, 2025

No. 01-08

STATE OF MAYFLOWER *v.* TREXEODEV

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
 FOR THE DISTRICT OF CLARK COUNTY

[January 22, 2025]

TURNTABLE, C.J., dissenting, joined by STICKZA and CABOT, J.J.

Although I join JUSTICE CABOT’s dissenting opinion in full, I write separately to emphasize my weariness in certain aspects of the majority’s opinion, namely its incessant credence to *Barker v. Wingo*, 407 U.S. 514 (1972), absent any consideration given to its total applicability to our ROBLOX platform.

I do not disagree that the *Barker* test is the correct one to employ in cases where we determine whether there has been a speedy trial violation. It is the correct test to employ. My disagreement stems from the majority’s narrow construction of its four-pronged test which reflects a callous indifference to the unique nature of our platform. Instead, I would push for a more holistic review of cases in order to determine their palpable cohesion with our platform and our roleplay mechanics. Furthermore, I seek to expand on dangers that may come into fruition if this Court were to give total or even partial deference to opinions rendered by the Supreme Court of the United States *absent* any consideration as to whether it is reconcilable with our platform.

I

At the outset, we are presented with a case where the state has brought a singular charge against the Defendant: one count of felony assault with a deadly weapon. The state formally charged the defendant on the 24th

of September 2024. The district court opened pretrial proceedings shortly thereafter where it closed on the 11th of October 2024. The district court then attempted to schedule trial, where the first state attorney refused to state their availability. When the state appointed another attorney, they too, failed to respond to the district court's attempts to schedule the trial. Finally, a third prosecutor appeared, but by this time, the state had gone through three attorneys and yet to no avail, no trial has been scheduled. At this point in time, the Defendant has still not had his opportunity to contest the claims that were made against him. The district court then dismissed the case without prejudice citing a speedy trial violation.

The majority's holding is lackluster. They engage in a hasty analysis of *Barker* and make a finding that there was no delay which "presumptively prejudiced the respondent." *Ante*, at 3. Its stringent reading of the four prongs in *Barker* was done without due regard for our roleplay system being based on ROBLOX. The Court invokes three separate points of contention in support of its reading of *Barker*: "(1) the felonious nature of the matter; (2) the type of evidence in the matter; and (3) the length of delay attributable to the government." *Ibid*.

A

1

First, the majority points towards the "felonious nature" of the matter. At face value, this conclusion is true. 1 M.S.C. § 2302 prescribes that assault with a deadly weapon shall be classified as a felony crime. However, it should be noted that state prosecutorial entities seldom ever charge for anything less than a felony charge. While there may occasionally be misdemeanor charges tacked on, their superior state budget unlatches certain limitations that we might otherwise expect from other entities, such as county or municipal entities that wish to enforce state laws within their own jurisdiction. I allude to the analysis conducted by JUSTICE CABOT in which he notes that the Department of Justice functions in a manner that is fundamentally incommensurable with real-life justice entities such as the federal Department of Justice. *See post*, at 3. This is for a variety of reasons. To tangentially suggest that we should automatically defer to the state's timeline despite a single felonious charge, one that is comparably much lesser on its face value when compared to other various tragedies that occur in our state on a day-to-day basis, is inherently erroneous. Our state Department of Justice is not presented with a workload that is slightly close to that of our real life counterparts, whether

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it be a state or federal agency. But that is what the majority fails to recognize.

The issue is dyadic—it intrinsically requires us to comprehend the differences between our platform and real life while simultaneously mandating us to read the situation in a harmonious manner; one that allows us to truly effectuate our ability to “say what the law is.” *Marbury v. Madison*, 5 U.S. 137, 177 (1803). By stringently reading *Barker*, we put ourselves in a situation where we deny ourselves the ability to “engage in a difficult and sensitive balancing process.” *Post*, at 15 (*citing Barker*, 407 U.S., at 533). Doing this is the equivalent of donning a judicial straitjacket, one that unequivocally strips us of our voice: leaving us as nothing more than a court of suggestion, and not one of law. To enable the state as a free-wheeling entity, one that is allowed to fragrantly ignore trial scheduling on the basis of prosecuting for a felony charge is an affront to the rule of law.

2

As for the evidentiary issue, the majority does not exactly expand upon its rationale for this particular conclusion. Instead, they presumptively determine that there is “both video and eyewitness evidence” which support the single felony charge. *Ante*, at 3. Video evidence by virtue of its online nature, makes it insusceptible to various types of spoliation, absent for deletion or corruption. But that did not appear to be the case here. However, in analyzing *Barker* under a ROBLOX context, I would instead suggest that we disregard any evidentiary spoliation for pieces of evidence that were collected through electronic processes. However, I would exclude eyewitness accounts from this, for lapses in time “can impair the accused’s ability to mount a defense” and “memories of his witnesses may fade,” *inter alia*. *Dickey v. Florida*, 398 U.S. 30, 42 (1970). Electronically accessible evidence, in the forms of videos and photographs, dominates our platform’s evidentiary realm. Simply take a look at any discovery submission: “Turn it over, and turn it over, for all is therein.” *Caperton v. AT Massey Coal Co., Inc.*, 556 U.S. 868, 902-903 (Scalia, J., dissenting) (citing 8 The Babylonian Talmud: Seder Nezikin, Tractate Aboth, Ch. V, Mishnah 22, pp. 75-77 (I. Epstein ed.1935) (footnote omitted)).

To grant broad deference to the state on the basis of the choice of their evidence, one that is virtually unavoidable due to the nature of the game, would be to grant them a *carte blanche* in how long it takes them to prosecute a particular matter. And I fear that this is what this Court has done today.

As for the length of a particular delay and its attributability to the government, I would instead suggest we do away with this approach and push for a more holistic approach, one that reads all of the factors in tandem with one another. For each factor is fundamentally valuable in terms of its relevance in determining a speedy trial violation. In this case, we have a state justice entity that threw nine valuable days away, despite various characteristics that are unique to them: something that real life counterparts just cannot compare to. To apply certain readings of *Barker*, ones which were culminated because of actual legal realms in real life, instead of narrowly tailoring its applicability in order to remain relevant to our ROBLOX platform, is reckless and it sends the wrong message to our lower courts. By throwing nine days, the state essentially shirked its duty to prosecute matters in a timely manner. Some parallel jurisdictions have found a common law basis in choosing to dismiss criminal matters, with or without prejudice, for failing to prosecute a matter. *See, e.g., State v. Gavin*, 1 Rid. 74 (2022). They recognized this in English common law judgments, notably ones of *non prosequitur*. *Id.*, at 77; *see also* 3 Blackstone, Commentaries 295-296 (1768). Additionally, the Ridgeway Supreme Court noted that “[t]he delay of proceedings itself presents an actual prejudice” as the Defendant stands “to suffer [reputational] injury.” *Id.*, at 78. For these reasons, I would find error in the majority’s declaration that the Defendant was not “presumptively prejudice[d],” for there was *actual* prejudice. *Ante*, at 3.

B

In order for a particular judgment to comport with our platform, we should generally inquire as to whether it internally recommends a non-fixed reading of issues: one that enables the judiciary to read a particular matter in a holistic manner. For the case of *Barker*, there are internal mechanisms that are present which allow us to put everything together harmoniously. The court must recognize certain differences and it must make a judgment in light of these differences. However, broad deference to *Barker* would be erroneous due to the level of analysis that the *Barker* court engaged in. They reviewed the workload of several prosecutors around the nation and recognized that a strict reading of its test would be improper, specifically when contrasted with the ROBLOX platform, which handles significantly fewer cases than real-life state and federal justice entities and operates under particular procedural, statutory, and jurisdictional limitations that are distinct from those of traditional courts.

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While I agree that *Barker* is the correct test to employ, I fundamentally disagree with how the majority construed it in such a strict manner. It glosses over the prejudice caused by the delay and instead rushes to justify its decision with a meager analysis. Instead, we should have construed *Barker* in a light that recognizes key qualities that are prevalent in our game, and matters that could not reasonably have been precipitated by the *Barker* Court. Namely on factors such as the number of practicing attorneys, how many are retained by the Department of Justice, and how many were assigned on this case specifically. Three prosecutors were assigned to this case and all of them shirked their duty to timely prosecute this matter. The investigation process is also fundamentally different, as the platform is cluttered with videographic evidence that is able to be saved at the click of a button. For these reasons, we should read *Barker* in a harsher light, one that rightfully shifts the burden onto the state given the legal atmosphere. Instead, I fear that we have done the opposite here.

II

Sparse and inconsistent decisions regularly stem from a court's decision to faultily defer to Supreme Court opinions that may tinge game mechanics or the nature of roleplay in a negative manner. Even if this Court subscribes to the *Barker* test, the majority has read it in a galvanizing manner. By choosing to elevate certain standards and constructing them in a narrow and unscrupulous way, the majority has denied the Defendant of the opportunity to be free from an onerous prosecution. Additionally, the majority even recounts that "period reasonable for prosecution of an 'ordinary street crime' is considerably less than for a complex criminal charge." *Ante*, at 2 (citing *Barker*, 407 U.S., at 531). Yet their opinion seems to directly contradict this despite the state charging the Defendant with a single felony charge, one that is far from being complex. Erroneous and sometimes even cogent readings of Supreme Court decisions establish bad precedent; this case is a hallmark example of that due the incommensurability of our platform and real life. We are devoid of a clearcut standard in order to consistently apply precedent in a blanket manner. This, in turn, leaves us to consider matters on a case-by-case basis.

Prior to adopting a particular test devised by the Supreme Court, it would be arbitrary to do so without an ancillary analysis of whether the holding would be reconcilable given the current game mechanics and the nature of our platform, ROBLOX. At bottom, it is a game, and we simply cannot impose strict limitations on the player base without a rational reason in doing so. A corollary to this is demonstrated in several Supreme Court opinions that push for holistic forms of review—rendering judgment based on an analysis of the totality of the circumstances, or even

TURNTABLE, C.J., dissenting

one that pushes for a text-and-history based approach. *See, e.g., Graham v. Connor*, 490 U.S. 386, 396 (1989) (adopting a “totality of the circumstances” test in determining reasonableness for an office’s use of force); *Maryland v. Pringle*, 540 U.S. 366 (2003) (adopting a review of the “totality of the circumstances” in determining the presence of probable cause); *District of Columbia v. Wesby*, 583 U.S. 48 (2018) (applying rationale in Maryland). It is not novel to suggest that we ought to be more holistic in our review notwithstanding our obligation to effectuate a judiciary that promotes the rule of law while simultaneously not requiring players to dredge through a swamp of legal inconsistency.

While recognizing our roots as a state within the Union of Columbia, we must also come into terms with practical considerations such as our sovereignty being a necessity for basic gameplay functions. Our own state Constitution recognizes this too. At every point, there remains a check that we possess over unnecessary federal bureaucracy whose existence does nothing more than to serve the whims of eccentric members of our community.

The Framers, in joining the Union of Columbia, recognized that our admission would fundamentally not be comparable to that of every other state in the Union. We “in part, accept and recognize our Federal Constitution.” Mayf. Const., Art. I. The only laws of the Union of Columbia which the state shall enforce are the very ones that our Senate has codified. Mayf. Const. Art. I., Sec. 11. Our juricentric Constitution is one that elects the judiciary as the sole protectors of the Constitution. It is a duty that we valiantly take on, and thus, the burden falls on us to determine which Supreme Court opinions are favorable in terms of its interference with crucial game mechanics and roleplay features.

For these reasons, I would advocate for less reliance on strict tests and instead adopt mechanics of review that truly allow us to consider all of the circumstances in the crafting of a particular judicial remedy. Indeed, the aim of our equitable power is “to adapt judicial power to the needs of the situation.” *United States v. Ramsey*, 331 F. 2d 824, 828 (CA5 1964). It is emphatically our duty to read the law as it is, but doing so blindly would result in an untenable position, akin to situation the majority’s opinion has put us in today. The *Barker* test internally recognizes the importance of not needing to pinpoint particular standards in order to determine a constitutional violation: “none of the four factors identified above as either a necessary or sufficient condition to the finding of a deprivation of the right of speedy trial.” *Barker*, 407 U.S., at 533. Yet, the majority purports that it is necessary, when the court “must still engage in a difficult and sensitive balancing process.” *Ibid.*

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Because I would instead affirm the lower court's judgment in holding that there was a speedy trial violation, I therefore must respectfully dissent from the Court's judgment.

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No. 01-08

STATE OF MAYFLOWER *v.* TREXEODEV

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[January 22, 2025]

CABOT, J., dissenting, joined by TURNTABLE, C.J.

Today I write to dissent from the court’s judgement and reversal of the District Court’s dismissal of the matter based on speedy trial grounds. I find my colleague’s application for *Barker* in its current form to be erroneous and too rigid for a ROBLOX community like ours. I also find the majority’s decision to not fully examine and apply the Barker requirements to be erroneous. I take no issue with the presentation of the facts as mentioned above and thank JUSTICE CLARKE for his thorough analysis of such.

I

The length of delay requirement in Barker is too narrowly construed for this court to apply without modification. The majority’s failure to fully engage with the Barker factors and find whether they are applicable to this matter, even prospectively, have and will lead to unanswered questions for litigators in the lower court. Namely, the court’s analysis begins and ends with the first prong: the length of delay. *See Barker*, supra at 530. I understand *Barker* itself finds that analysis after the first prong is unnecessary if it is unsatisfied, but again I find this insufficient for a community like ours where a thorough analysis and application of the case

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law would likely provide more clarity to attorneys and criminal defendants alike.

I would do away with the arbitrary nonsense that is relied upon to subjectively decide what type of delays are attributable to the court and to the state. See *Ratchford v. State*, 785 A.2d 826, 829 (2001). Through this length of delay analysis, the court has decided on a nine-day delay failing to be presumptively prejudicial, and in doing so they engage with the fourth prong of the *Barker* test—indirectly. This type of analysis will inevitably require this court to start calculating delays and attributing fault for such delays in a manner that I do not find sufficiently objective and fair enough to apply in the ROBLOX context.

I believe that it is necessary to either set a rigid timeline and find the origin for such deadline in the common law or establish a specific test to decide when a defendant has had their speedy trial protections violated (arguably before *Barker* analysis should be invoked). The test in *Barker* is simply insufficient by itself to protect the interests of defendant, especially when the statutes of this state are silent on when a defendant's Sixth Amendment right is violated. Cf. 18 U.S.C. Ch. 208. This court does a disservice by not engaging in further analysis of contextual and proportionality weighting that they engage in towards the end of the court's opinion. I will address this below further in my dissent.

II

Jurisprudence from other ROBLOX communities supports the lower court. I believe that this court also missed the opportunity of taking judicial notice of the speedy trial jurisprudence that other ROBLOX communities have adopted. The jurisprudence of other well-respected common-law jurisdictions on ROBLOX should be considered and, if necessary, utilized, if it would give legitimacy to a judicial decision that would otherwise be lacking in supporting judicial reasoning. Lower court judges should do so with the confidence that this court will review and apply the reasoning of other common law jurisdictions if it would develop and fit into our common law seamlessly.

In doing so, I take an example of a leading speedy trial case in (N) United States of America: *Cabot v. United States*, 10 U.S. 98 (2020). Justice Kagan wrote for the court in applying the (Federal) Speedy Trial Act

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(STA). After applying the statutory U.S. Code conversion period set by the Congress, decided that a trial must commence within 9 days of a criminal information being filed. This was a rigid interpretation of the STA but in doing so it recognized that rigidity gave certainty to criminal defendants. I cite *Cabot* because it also takes a holistic approach – deciding that delays up to a month on ROBLOX are incompatible with the general due process protections that criminal defendants are afforded under the Sixth Amendment.

The respondent faced one felony count of assault with a deadly weapon, which court discovery records indicate was supported by both video and eyewitness evidence. The district court’s final order, in part, states that as a direct result of the delay in this matter, the defendant’s ability to mount an effective defense was impaired. We calculate the actual delay from the time the district court ordered the parties to schedule trial to when it dismissed the matter. In this time, only nine days had elapsed.

This holistic approach can arguably be traced to the fact that “due process is flexible and calls for such procedural protections as the particular situation demands.” *Morrissey v. Brewer*, 408 U. S. 471, 481 (1972). In this holistic analysis I believe the only reasonable conclusion that a court can come to when: (1) the Department of Justice has a monopoly on practicing attorneys within the state, (2) they bring charges on a (medium-severity) singular felony count of ‘assault with a deadly weapon’, (3) the full and unfettered resources of the state are launched against a criminal defendant, and (4) substantive progress has not been made within a reasonable time period (in this case almost a month), then the state should bear that burden – not a criminal defendant.

II

A holistic and proportionate due process test should be applied and created before applying the Barker analysis for speedy trial claims. I believe that this is a missed opportunity for the court to build upon the holding that “due process, unlike some legal rules, is not a technical conception with a fixed content unrelated to time, place and circumstances.” *Cafeteria & Restaurant Workers v. McElroy*, 367 U. S. 886, 895 (1961) (internal quotation marks omitted). Surely, if the court is not in favor of

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establishing a rigid timeline as to when a speedy trial right is violated, and due process protections are abridged then a weighting test should take place *before* any sort of *Barker* analysis is engaged.

My main issue is that certainty is not given to criminal defendants despite this ruling by the majority. We remain in the wilderness because we have applied a *Barker* analysis without a supporting statute – in doing so I find the *Barker* test to be quite hollow. It is quite peculiar because the majority judgement, in my view, seems to engage a proportionate and holistic approach by looking at the nature of the charges and reconciling this to the delay (i.e., the AWDW charge). However, the court finds that the delays incurred are justified because of the felonious nature of the charge. I find this particularly unconvincing because of the 4 reasons outlined in the second section of my dissent. A single charge of felonious AWDW should not take a month to almost get to trial. If the state has a monopoly on attorneys and almost unlimited resources, they should be begging for a trial – not the other way round. When the state must change the prosecutor 3 times it suggests to me that they are unprepared for trial. I remain unconvinced as to why a criminal defendant and not the state should pay the price for that.

Instead, I would suggest that before the courts look to applying the *Barker* factors they should instead engage in a holistic proportionality-driven analysis. Namely, does the power and the resources disposable to the state justify the delay that has been incurred. This also would involve looking quite briefly as to whether the delays were borne out of bad faith conduct by the defense and the complexity of the charges being brought. If the defense engages in the process in good faith, make no attempts to unduly delay the proceedings to benefit from speedy trial rights, and the nature of the charges do not require abnormal manpower by the state to pursue, then the defendant's speedy trial rights and due process rights should be vindicated.

In applying this analysis to the facts here, the defendant would likely prevail. This is not a thirty-count racketeering indictment against joint defendants, this is a single count AWDW to which the state's almost unlimited resources seem to be unable to keep up with. There is no suggestion that the defense engaged in any bad faith conduct. I would also seek to set aside the *Barker* requirement that the defense invoke their speedy

CABOT, J., dissenting

trial rights with vigor to invoke them in good faith. Simple assertion of the right should be good enough to provoke a response by the almighty power of the state.

In turn, I do not see the application of this proportionality test to be particularly incompatible with the principles engaged in *Barker*. I simply find the *Barker* test to be too rigid to apply on its own in the context of ROBLOX without a supporting statute or time conversion. *See Barker*, supra at 533 (“[T]hese factors have no talismanic qualities; courts must still engage in a difficult and sensitive balancing process”). I would have directed the lower courts to engage in the proportionality-based analysis until a statute is designed by the legislature and is signed into law, in which case this analysis—with reference to the length of the delay incurred—should be revisited in accordance with the new prospective statutory framework. As a result, I would have developed upon and affirmed the judgement of the District Court favoring dismissal with prejudice.

Therefore, I respectfully dissent.

Opinion of the Court

CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER
AT JANUARY TERM, 2025

No. 01-12

CASHMONEY383838 v. COMBATROLE, ET AL.

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[January 22, 2025]

KHALED, J., delivered the opinion of the Court. STICKZA, J., filed a dissenting opinion in which NOTABLE, J., joined.

On November 3, 2024, Petitioner CashMoney383838, a resident of Clark County, Mayflower, was on a road trip passing through the village of Mersea when Officer Combatrole of the Mersea Police Department, engaged in a high-speed pursuit, collided with the Petitioner's sedan. The fleeing suspect, too, was hit and sent flying into the air, and the Petitioner was left disoriented, shaken, and in fear for his life. Officer Combatrole exited his cruiser, wielding a Highland baton, and vandalized the Petitioner's vehicle, shattering multiple windows and damaging the vehicle's exterior. The Petitioner was then handcuffed by the officer and, later, released without charges.

Petitioner subsequently filed suit against Officer Combatrole under 42 U.S. Code §1983 for excessive use of force, false detention, and depriving him of his property without due process under the Fourth and Fourteenth Amendments to the U.S. Constitution. Petitioner likewise sued Officer Oofiser for failure to intervene, invoking the same constitutional provisions.

The District Court dismissed sua sponte for want of jurisdiction. In its order, the court reasons that 42 U.S. Code §1983 does not provide a

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basis for tort liability because “the laws of the Union of Columbia shall not be enforced by the State, unless such laws have been codified by the Legislature.” See *CashMoney3838 v. Combatrole*, et al., CV-0061-24 (D.C.C. 2024) (citing MF. CONST. art. I, §11). The matter is now before us on appeal by CashMoney3838.

I

“Beginning in Colonial days, when the settlers of our Atlantic seaboard brought with them the legal system to which they were accustomed, they, in great part, retained only such rules and customs as were adapted to their social conditions and physical environment and discarded that which was in-applicable.” Frederick G. McKean Jr., *A Useful Maxim*, 4 N.C. L. Rev. 118 (1926) (McKean). Thus, the common-law presumption that the services of a physician are honorary and gratuitous was “never adopted by them,” the ancient Saxon practice of holding sales in market overt conclusive upon the title to personality “never existed in any of the states,” and the doctrine of ancient lights was also “never imported into what is now the United States, for numerous sky-scrapers are visible evidence of this.” *Id.* The change of sovereignty affected by the Revolutionary war, therefore, effected a change of all the “political and other laws which thereby became incompatible.” *Id.*

The reasons behind these laws ceased with the circumstances of the Nation, and, as a consequence, the laws themselves ceased. See McKean, at 119 (“*Cessante ratione legis, cessat ipsa lex.*”). Similarly, when the State of Mayflower was established in the year 1620— “whereby the Township of Plymouth, City of Lander, and territory of Medford now lay”—they, too, retained, in great part, only such laws as they deemed appropriate. MF. CONST. art. II, pmbl. As a result, while our Framers adopted the common law of England, see, e.g., MF. CONST. art. I, §§7, 9, and adopted, in part, the Federal Constitution, MF. CONST. art I, pmbl., they also made a conscious choice to omit Federal statutory law. See MF. CONST. art I, §11 (“The laws of the Union of Columbia shall not be enforced by the State, unless such laws have been codified by the Legislature.”)

My brother STICKA contends that the Framers, simply, had no power to do so. In support he cites the Supremacy Clause of the Federal Constitution: “This Constitution, and the Laws of the United States shall be

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the supreme Law of the land and the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding.” U.S. CONST. art VI, cl. 2. This argument is without merit. When the State of Mayflower joined the Federal Union 156 years after its initial founding, MF. CONST., art I, §11, it expressly provided that “the laws of the Union of Columbia [*or United States of America*] shall not be enforced by the State, unless such laws have been codified by the Legislature.” *Id.* And this cannot be said to conflict with the Supremacy Clause or the State’s allegiance to the Federal Union; for when the State joined the Union it only “*in part*, accept[ed] and recognize[d] our Federal Constitution.” MF. CONST. art I, pmbl. Like our sister state Ridgeway, our Constitution only incorporates certain Federal rights and liberties and omits others. *See, e.g., State v. Lxnias*, 1 Rid., at 502 (2022) (JACKSON, J., concurring) Thus, a person may allege and bring a claim founded in the Federal Constitution; but our courts are without jurisdiction to consider claims founded in Federal statutory law.

Admittedly, this may prove paradoxical, but “[i]f the authors of these guarantees, fully aware of the potential conflicts between them, were unwilling to resolve the issue by assigning to one priority over the other, it is not for us to rewrite the Constitution by undertaking what they declined to do.” *See Nebraska Press Assn. v. Stuart*, 427 U.S. 539, 561 (1976). Our Framers expressly declined to adopt Federal laws into our jurisprudence. Now, 248 years later, we are bound to honor their choice. To do otherwise would not merely trespass upon the prerogatives of our Framers; it would undermine the foundational principle of sovereignty that has guided our state since its inception. The rule was stated by James Madison:

“Were the people regarded in this transaction as forming one nation, the will of the majority of the whole people of the United States would bind the minority, in the same manner as the majority in each State must bind the minority; and the will of the majority must be determined either by a comparison of the individual votes, or by considering the will of the majority of the States as evidence of the will of a majority of the people of the United States. Neither of these rules have been adopted. Each State, in ratifying the Constitution, is considered as a sovereign body, independent of all others, and only to be bound

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by its own voluntary act.”

(citing *The Federalist* No. 39, at 241 (James Madison) (Jacob E. Cooke ed., 1961.))

The State of Mayflower cannot be bound by Federal law except by its own assent. And this assent having been declined by the Framers in the very text of the Mayflower Constitution, this Court is without power to declare it retroactively. I recount the address of Professor Brenda Popplewell before the Ridgeway Superior Court: The role of the courts is ‘jus dicere’ and not ‘jus dare’ – to state the law, and not to make or give it. See Henry G. Bohn, *The Moral and Historical Works of Lord Bacon*, at 146 (1852). “[E]lse” wrote Sir Francis Bacon “will it be like the authority claimed by the Church of Rome, which, under pretext of exposition of scripture, adds and alters, and pronounces that which they do not find, and by show of antiquity introduces novelty.” *Id.*, (cleaned up).

The issue is further confounded by the fact that State law already furnishes an adequate remedy. 5 MSC 1 §3101.5 provides:

“Every person who, under color of any statute, ordinance, regulation, custom, or usage, subjects, or causes to be subjected, any citizen of the State of Mayflower or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable for deprivation of rights to the party injured in an action at law, suit in equity, or other proper proceeding for redress.”

5 MSC 1 §3101.5 (cleaned up).

§3101.5 is duplicate §1983. However, §3101.5 is far preferable when bringing a suit against State officials. While §1983 does not waive State sovereign immunity under the Eleventh Amendment, *e.g.*, *Alden v. Maine*, 527 U.S. 706, 736 (1999) (“42 U.S.C. § 1983 did not create a cause of action against the States”), §3101.5, by contrast, subjects the State to liability in the same fashion that §1983 would subject the Federal government to liability. Not to mention that two additional State law claims, 5 MSC 1 §3212.1 and 5 MSC 1 §3212.3, also provide an explicit cause of action against the State.

It is unclear why Petitioner elected to bring his claim under §1983 and overcome the hurdle of qualified immunity or invoke some *Ex parte Young* exception when State law claims waiving sovereign immunity were

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at his disposal. We cannot but imagine that Petitioner wished to circumvent mandatory arbitration or other State requirements in bringing his claim—or perhaps, this was a matter of principle. Nonetheless, the power to rewrite the Constitution properly rests in the hands of the people, and not in the judiciary. *See Ex parte James*, 836 So. 2d 813, 829 (Ala. 2002) (HOUSTON, J., concurring). “It is of this power” that the plaintiff in this case, in my opinion, “should have availed themself[].” *Ibid.*

* * * *

While the argument raised by Petitioner is accompanied by authority of great weight, we may exercise “neither force nor will but merely judgment.” The *Federalist* No. 78, p. 456 (C. Rossiter ed. 1961) (A. Hamilton); *see also Obergefell v. Hodges*, 576 U.S. 664 (2015) (slip op. at 2) (ROBERTS, C.J., dissenting) (“Judges have the power to say what the law is, not what it should be.”) Our Constitution speaks in no ambiguous terms: Federal statutes unincorporated by our Senate are beyond judicial notice. AFFIRMED.

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CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER
AT JANUARY TERM, 2025

No. 01-12

CASHMONEY383838 *v.* COMBATROLE, ET AL.ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[January 22, 2025]

STICKZA, J., dissenting, joined by NOTABLE, J.

When bands of farmers and merchants behind the frontlines of the Revolutionary War had used up their remaining stores of powder and shot and retired their worn muskets, a new task—indeed a demanding task—laid ahead: forming a system to govern the infant nation. The first system was created under the Articles of Confederation, but it proved to be too weak. Congress was the only branch, and the thirteen states were not bound to its demands. There was no executive branch to implement laws and no courts to interpret them. So, as far as the states were concerned, any laws passed by the Confederation Congress were mere dead letters.

But in the summer of 1786, that attitude changed. High taxes had wedged Massachusetts farmers between foreclosure of their farms and mounting debts. Hundreds of local farmers took up arms and seized courthouses to delay foreclosure proceedings. But when Massachusetts turned to Congress for help to quell the rebellion, there was simply nothing that could be done: Congress had no money, and it could not raise an army under the Articles of Confederation. On a hope and a prayer—and with some assistance from the other states—the insurrection was stamped out, and Massachusetts was returned to order. Congress, however, was in dismay.

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If the nation had struggled to quell a domestic quarrel, then there is no doubt that it would struggle—if not completely fail—to defend itself from foreign superpowers. Adding to the prospect of a fullblown attack, there was concern that a weak federal government with even *weaker laws* would quickly fade out, and that as a result, the states would become independent of each other. To confront those threats, each state sent delegates (no doubt with a few extra pairs of breeches) to convene at a private hall in Philadelphia to discuss potential revisions to the *existing* Articles of Confederation. For four months, sweat-drenched delegates convened in a boarded-up room and tensely debated the proper form of government. Some of them left after finding out that, after a few weeks into the convention, the Articles were being replaced by an entirely new document.

There were many debates in the shuttered room of Independence Hall, but there is only one that is relevant to this case: the Large State Plan versus the Small State Plan. Coming from Virginia, the Large State plan proposed an array of solutions, including a bicameral legislature; a federal executive *chosen* by Congress; and, as relevant here, legislative power to “to legislate in all cases to which the separate states are incompetent.” Yates, *Secret Debates*, pp. 209-212. But the small state of New Jersey slightly disagreed, countering the Large State Plan with a unique spin: federal law would be supreme to the states, “so far forth as those Acts or Treaties shall relate to the said States or their Citizens.” *See id.* at pp. 129-137. That provision was passed but later tweaked to broaden its reach. After all, “[a]nything...that shall be enacted by Congress contrary [to its laws or the Constitution], will not have the force of law” James Wilson, *Pennsylvania Ratifying Convention*, vol. 4, p. 228.

That was over two hundred years ago. But, somehow, we have circled back to the same contentious debates as our founding fathers. And while the windows of our chambers are not shuttered by planks of wood—and, thankfully, we do not have to wear tight breeches—the majority makes a remarkable move to shimmy our system of laws away from federal accountability. And while our decisions will invariably honor federal precedent, the majority has foreclosed the possibility of raising federal claims (including constitutional challenges) in our state courts—even when they undoubtedly should.

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James Wilson is surely rolling in his grave.

I

The majority dedicates much of its opinion to the history of the United States—quoting the 1787 Convention, discussing the nature of laws in the sixteenth-century British colonies, and even citing our own constitutional framework. I, too, have discussed that history—the *actual* history—in my dissent. But with that out of the way, I will turn to the merits of this case and address the unique nature of 42 U.S. Code § 1983 claims and its applicability in our state courts.

A

The Ku Klux Klan and Southern Courts. Section 1983 was enacted “to provide compensatory relief to those deprived of their federal rights by state actors,” *Felder v. Casey*, 487 U.S. 131, 141 (1988), “notwithstanding any provision of state law to the contrary,” *Patsy v. Bd. of Regents*, 457 U.S. 496, 504 (1982). In the antebellum South, racist groups like the Klu Klux Klan were the norm, and chances were good that you would stumble across them (a lot). But racial discrimination was more than an abstraction; it was a reality. Southern states selectively enforced laws that were meant to *protect* individual rights and, in doing so, obstructed African Americans from recovering damages in state court. In 1871, Republican Congressman Shellabarger introduced the Ku Klux Klan Act, which, in relevant part, is codified at 42 U.S. Code § 1983.

The House floor was as hot as Mississippi summer. One Southern Democrat furiously hammered the Act, noting that “jurisdiction to determine the individual rights of citizens of the same State...belongs only to the State tribunals.” CONG. GLOBE, 42d Cong., 1st Sess. 331 (1871) (statement of Rep. McHenry (D-KY)). House Republicans, however, held a different view: Southern courts were plagued by racist judges and racist jurors. Juries were invariably packed with people from the “neighborhood,” who were “[un]able to rise above prejudices or bad passions or terror.” *Id.* at 460 (statement of Rep. Coburn (R-IN)). Law enforcement also proved to be an issue, because “[t]he Klans [we]re powerful enough to defy the State authorities.” *Id.* at 72 (statement of Rep. Blair (R-MI)). And in most cases, “*they were* the authorities.” *Ibid.*

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Federal courts, on the other hand, “were seen by Republicans as superior in carrying out the ordinary course of justice.” Tyler Lindley, “ANACHRONISTIC READINGS OF SECTION 1983” *Al. L. Rev.* 897, 935 (2024). They were far away from local mobs, and they had “the aid of the [Federal] Government.” *CONG. GLOBE*, at 460 (statement of Rep. Coburn (R-IN)). And there was little debate about the effectiveness of state law itself; instead, Republicans were concerned about the *enforcement* (or lack thereof) of those laws. *See* *Al. L. Rev.* at 935. Even though Section 1983 was passed with the goal of providing Black litigants with an impartial forum to pursue monetary damages against state actors, there is no evidence that Congress has exclusively reserved those claims for adjudication in federal court; in fact, there is a wealth of evidence to the contrary.

Congress and Supreme Lawmaking. The Supreme Court has barely nipped the question of applicability of Section 1983 claims in state courts, but it has said enough to conclude that state courts have “to take cognizance of an action to enforce a right of civil recovery arising under the act of Congress.” *Second Employers' Liability Cases*, 223 U.S. 1, 57 (1912). Merely because an act of Congress does not ‘mix well’ with state policy is not enough of an excuse to deny federal claims, because “[w]hen Congress...adopted that act, it spoke for all the people and all the states, and thereby established a policy for all.” *Claflin v. Houseman*, 93 U. S. 130, 136-137 (1876). Federal policy is “is as much the policy of [Mayflower] as if the act had emanated from its own legislature,” and it should “be respected accordingly in the courts of the state.” *Id.* But the majority departs from this accepted understanding for the sake of folktale—to preserve an unnatural story about Mayflower and its Constitution.²

I will concede that state courts are not required to entertain all federal

² The majority cuts corners in its opinion; it argues that when Mayflower “joined the Federal Union” 156 years ago, it chalked up some ground rules: First, that “the laws of the Union of Columbia shall not be enforced by the State, unless such laws have been codified by the Legislature,” *MAYF. CONST.* art I, §11; Second, that the Union only partially “accept[ed] and recognize[d] our Federal Constitution.” *MAYF. CONST.* art I, pmb. Those rules neatly tee up the basis of my dissent: If the Union of Columbia is a sovereign entity of the United States, then the laws of the Union are different from those of the federal government. As such, federal laws are not subject to the §11 codification requirement. And the mere fact that the Union has “accepted” the Federal Constitution is enough to support my understanding that the Supremacy Clause applies to Mayflower.

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claims—only those that Congress has vested in the jurisdiction of the state courts. Indeed, “Congress frequently has exercised the power to confer exclusive jurisdiction upon federal courts.” Kenneth Wilbur, “Concurrent Jurisdiction and Attorney’s Fees.” U. Pa. L. Rev. 134, 1207; see, e.g., L. Loss, FUNDAMENTALS OF SECURITIES REGULATION 1016 & n.4 (1983) (Claims arising under the Securities Exchange Act provides exclusive jurisdiction in federal courts). However, “absent a finding of congressional intent to prevent state courts from hearing a federally created claim, state courts have concurrent jurisdiction over the federal claim.” *Id.* Section 1983 contains no such provision. And the relevant jurisdictional statute only provides that federal courts have *original* jurisdiction over Section 1983 claims, but not exclusive jurisdiction. See 28 U.S.C. § 1343(a)(3). Challenges came and went, but in 1980, the Supreme Court settled this jurisdictional dispute once and for all: “While [we] reserve[ed] the question whether state courts are obligated to entertain § 1983 actions, we held that Congress has not barred them from doing so.” *Maine v. Thiboutot*, 448 U.S. 1, 3 n.1 (1980); see also *Martinez v. California*, 444 U. S. 277, 283-284, n. 7 (1980).

But the language of Congress is not our only source of concurrent jurisdiction. So is the Constitution. Justice Joseph Bradley probably put it best: “Legal or equitable rights ... may be enforced in any court of either sovereignty competent to hear and determine such kind of rights ...” *Clafin*, 93 U.S. at 136. Indeed, “[t]he fact that a State court derives its existence and functions from the State laws is no reason why it should not afford relief,” because, under the Constitution, it “is subject also to the laws of the United States, and is just as much bound to recognize these as operative within the State as it is to recognize State laws.” *Id.* And as I have discussed at length, “Congress may, if it see fit, give to the federal courts exclusive jurisdiction [over its laws].” *Id.* In the real world, federal law is thus supreme to state law. But in Mayflower, where Congress does not exist, and where the Constitution is cut off at a certain page, that is seemingly not the case.

* * * *

Mayflower is not a fairytale land where the State replaces the federal government. The Framers recognized as much when they acknowledged that the laws of the United States and its Constitution apply to our state

Opinion of the Court

courts. And because Congress has used its *supreme* lawmaking powers to give state courts concurrent jurisdiction over Section 1983 claims, Mayflower is a state, and it is not sovereign from the federal government. I *dissent* from the contrary opinion.

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CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

No. 01-14

ZRIHEM, ET AL. *v.* TDARK99

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[February 16, 2025]

KHALED, J., delivered the opinion of the Court. TOTORO, J., concurred in the judgment. CABOT, J., filed a dissenting opinion in which TURNTABLE, C.J., and CLARKE, J., joined.

On August 28th, Respondent TDark99 was accepted to the National Guard and assigned to the 5th Mechanized Company. On some day, an incident involving the Respondent and a State Trooper led to the Trooper's death. Hours later, Adjutant General zrihem, declared the Respondent unfit for service and summarily discharged him from the National Guard. The discharge was classified as dishonourable, with no prior notice of hearing.

Believing this termination violated his due process rights, the Respondent initiated a suit against the National Guard claiming that the dishonourable discharge caused significant reputational harm. Although, later, the Guard rehired him and ultimately gave him an Honorable discharge, the original dishonourable discharge remained on record. The District Court ruled in favour of the Respondent, finding that the Guard failed to provide procedural protection before the termination. The National Guard now seek to overturn that decision, arguing that the Respondent's employment was at-will, and the case is moot due to his re-employment and subsequent discharge. The matter is now before this Court on appeal.

Opinion of the Court

I

The doctrine of at-will employment traces its roots back to English common law, where indefinite employment was presumed to last for one year unless proven otherwise. See 1 W. Blackstone, *Commentaries on the Laws of England* 413 (1769). However, the Union of Columbia, while influenced by English common law, declined to follow from this presumption. Instead, Horace Wood’s seminal 1877 treatise, *Master and Servant*, introduced what became known as “*Wood’s Rule*.” This principle defined indefinite employment as terminable at will by either party unless a specific agreement or duration was established.

“With us, the rule is inflexible, that a general hiring or indefinite hiring is prima facie a hiring at will, and if the servant seeks to make it out a yearly hiring, the burden is on him to establish it by proof. A hiring at so much a day, week, month or year; no time being specified, is an indefinite hiring, and no presumption attaches that it was for a day even, but only at the rate fixed for whatever time the party may serve.”

Horace G. Wood, *Master and Servant* §134 (cleaned up).

Although controversial, this rule became the bedrock of employment law and continues to be. Courts “had no doubt that the great preponderance of the best considered cases in this country recognize and affirm the rule laid down by Wood in his work on *Master and Servant*, and which he terms the ‘American rule,’ *Greer v. Arlington Mills Mfg. Co.*, 43 A. 609, 612 (Del. Super. 1899). Far from being outdated, Wood’s Rule continues to underpin employment law, which maintains that “either party may terminate an employment relationship with or without cause unless limited by statute.” RESTATEMENT OF EMPLOYMENT LAW § 2.01. However, assumption disappears when a property interest is claimed.

Respondent asserts this right, thereby framing the question of whether Respondent held a property interest in his continued service in the Guard. The Due Process Clause, of course, does not itself define what constitutes a property interest. Rather, courts rely on “rules or understandings that stem from an independent source, such as state law—rules or understandings that establish certain benefits and create claims of entitlement to those benefits.” *Board of Regents v. Roth*, 408 U.S. 564. Property and liberty interests are not governed by fixed definitions but are instead informed by state law. See *Bishop v. Wood*, 426 U.S. 341. (“A

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property interest in employment can, of course, be created by ordinance, or by an implied contract.”)

The National Guard’s own policies, most chiefly Principle Four, leave no doubt. They plainly declare the Respondent’s employment to be at-will. They likewise grant commanding officers the authority to discharge guardsmen for an array of transgressions, including behavior deemed “unfit for service,” “gross misconduct,” or damaging to “the image of the Guard.” *Id.* These broad reasons, coupled with the explicit absence of required judicial proceedings, make it abundantly clear that the relationship is at-will. The Respondent contends that the policies at issue created a property interest in Dark’s continued service, arising from the memorandums and policies. That dog won’t hunt. As noted in *Harris v. City of Wilmington*, 644 F. Supp. 1483, 1487 (D. Del. 1986), “a subjective expectation of continued service does not suffice to establish a constitutionally protected property interest.” For such an interest to arise, one must identify a *bona fide* legal entitlement, not a personal presumption of everlasting employment.

Squarely in the policies scope, Respondent allegedly disobeyed an order from Colonel Warfare—a textbook instance of “gross misconduct” under any layman, and sensible reading. The Guard’s Zero Tolerance Policy explicitly provides dishonorable discharges in these circumstances, and it dovetails neatly with our Constitution which explicitly states that “the Adjutant General’s judgment [is] necessary to bring the organizations, armament, equipment, and discipline of the National Guard to a high degree of efficiency” MF. CONST. art. VII, § 4. (emphasis added). This unambiguous directive of authority from our Framers ensures that discharges remain essential tools in maintain readiness. Let us suppose, however, arguendo that the Constitution did not speak to us on this matter. The policies still affirm that commanding officers may mete out discipline or terminate service based on “reasonable judgment of infractions”. So, it is no surprise that “[p]olicies state in great detail that ... [state] employees are employed at-will and that the policies do not create an employment contract.” *Darr v. Town of Telluride*, 495 F.3d 1243, 1253 (10th Cir. 2007). The Guard’s policies therefore imply no permanent service, but rather unfettered discretion. Respondents cannot plausibly claim such a property interest. As the court aptly noted, “[t]o have a

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property interest in a benefit, a person clearly must have more than an abstract need or desire for it. He must have more than a unilateral expectation of it.” *Sims v. Fox*, 505 F.2d 857, 861 (5th Cir. 1974). The Guard’s policy in the most plain text possible, disclaim any guarantees of continued employment, instead opting to reserve for discretion. That by itself eviscerates any notion of property interest, and his Loudermill claim. Both necessarily fail.

II

Although Respondent’s position is undeniably at-will, the possibility remains that a liberty interest is implicated. After all, “even if a property right does not exist, a liberty interest may nevertheless be present.” *Rich v. Sec’y of the Army*, 735 F.2d 1220, 1226 (10th Cir. 1984). Similarly, the Union Supreme Court instructs us that “where a person’s good name, reputation, honor, or integrity is at stake because of what the government is doing to him, notice and an opportunity to be heard are essential.” *Wisconsin v. Constantineau*, 400 U.S. 433, 437 (1971). Indeed, lower courts have recognized that service members’ liberty interests may be implicated when they are discharged under circumstances less than honourable. See *United States ex rel. Karr v. Castle*, 746 F. Supp. 1231, 1241 (D. Del. 1990); *Casey v. United States*, 8 Cl. Ct. 234, 241 (1985).

Ordinarily, a government employer’s dismissal does not, by itself, amount to a deprivation of liberty. A dishonorable discharge, however, presents a different scenario. It confers a stigma on the individual and can foreclose future employment opportunities thereby triggering a liberty interest. Given these harmful ramifications, the law demands procedural safeguards, including a fair hearing, which offers “the individual ... an opportunity to clear his name.” *Codd v. Velger*, 429 U.S. 624, 627 (1977). Because no post-termination hearing—a crucial step for establishing the factual basis of any alleged reputational harm—has yet taken place, we cannot make a de novo determination on whether any stigma attached here. Without such a hearing, the record remains incomplete, and we decline invitations to pass judgment at this point.

If the lower court determines that Dark has a liberty interest at stake, the next question is straightforward: what process is due? As *Codd* explains, when the State imposes a “badge of infamy,” it triggers the

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instantaneous need for a name-clearing hearing. But this isn't a solely bureaucratic tickboxing exercise, it should be a chance to allow the individual to confront the allegations, cross-examine their accusers, and present independent evidence to refute these claims. *See Walker v. United States*, 744 F.2d 67, 70 (10th Cir. 1984) ("procedural due process often requires confrontation and cross-examination of those whose word deprives a person of his livelihood") (*citing Willner v. Committee on Character*, 373 U.S. 96, 103 (1963); *McGhee v. Draper*, 564 F.2d 902, 911 (10th Cir. 1977)).

The respondent insists the tribunal is inherently unbiased, but one can almost hear *Lujan v. Defenders of Wildlife*, 504 U.S. 555 (1992) sighing at the proposition. This is a hypothetical the respondent hasn't even bothered to substantiate, let alone attempt to engage with meaningfully. Assertions without evidence do not make for serious arguments, and *Lujan* would be the first to remind us that courts deal in actual cases and controversies, not theoretical musings untethered from the facts. A proper tribunal would afford the opportunity to challenge potential bias recusal mechanisms for this very reason. The respondent had the option to appeal to the district court on the matter of the guard allegedly violating its own policies, a route outlined in various caselaw.

Frankly, this is the kind of argument a well-meaning first-year law student ("1L") at Mayflower State University would hesitate to submit, knowing it would collapse under even cursory scrutiny – a point I vividly remember from attending a lecture by JUSTICE CLARKE as a visitor on the art of debate, "These are arguments which do not seek to prove/gain anything and are just done to argue... they [will waste] valuable time" (1L-4 Lecture Slides, *Mayflower State University*, Professor Acertrxo PhD – published with permission).

IV

Finally, let us tackle the matter of jurisdiction. The very policies on which the Respondent stakes his purported property right also spell out an avenue for appeal of disciplinary actions namely, the tribunal now known as the Guard Appeals Board. Evidence has been presented confirming the existence of this board and its operation beyond the standard four-month span. And because the Supreme Court has ruled " . . . no military organization can function without strict discipline and regulation

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that would be unacceptable in a civilian setting,” which underscores the necessity for specialized regulations and a unique system of military justice” *Chappell v. Wallace*, 462 U.S. 296, 300 (1983), Respondent therefore should have pursued his appeal through the Guard Appeals Board before seeking recourse in a civilian court.

If this wasn’t enough, the *Mindes* test, slams the breaks. It makes clear, pristinely that “ . . . a court should not review internal military affairs in the absence of (a) an allegation of the deprivation of a constitutional right, or an allegation that the military has acted in violation of applicable statutes or its own regulations, and (b) exhaustion of available intraservice corrective measures” (*Mindes v. Seaman*, 453 F.2d 197, 201 (5th Cir. 1971)). Respondent necessarily fails in his claim because he did not exhaust the remedies available to him. Exhaustion is a well-established requirement in military-related cases, supported by a wealth of precedent too extensive to enumerate here. More critically, the Court concluded that “[i]f an available procedure has not been employed to rectify [an] alleged error [in a military judgment] which the . . . court is asked to correct, any interference by the ... court may be wholly needless.” (*Winck v. England*, 327 F.3d 1296, 1301–02 (11th Cir. 2003), *quoting Gusik v. Schilder*, 340 U.S. 128 (1950)).

But, if our jurisdiction was proper, through some other means, our role as an appellate court is a role of last resort, not first view. As my brother TOTORO notes: “We cannot usurp the role of the District Court by assuming jurisdiction... to crown ourselves king of both law and fact.” (*DivineCrime et. al. v. Mayflower Elections Comm’n*, 1 Mayf. __ (2024) (TOTORO, J., concurring in the denial) (pending)). Nor does our Constitution hand us the sweeping power of original jurisdiction: it confines this Court to “final appellate jurisdiction,” not the District Court’s “original jurisdiction.” MF. CONST. art. X, § 2. Questions of stigma-plus must be addressed first in the lower courts before we are called upon to pronounce final judgment.

As already declared, this case is not ripe for appellate review, and we remand it to the District Court of Clark County for further proceedings. The procedural and jurisdictional issues remain unresolved, and it is the District Court’s role—not ours—to address them in the first instance. Our Framers explicitly rejected the concept of “anytime review,” as

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practiced in Nightgaladeld's United States of America, favoring instead a system that prioritizes thorough District Court fact-finding before appellate intervention. First, the District Court must determine whether the Appeals Board is authorized to conduct a name-clearing hearing. The policies invoked by the Respondent provide for an appeal to this Board, yet its legitimacy as a tribunal capable of satisfying constitutional due process requirements remains unresolved.

Second, the District Court must apply the *Mindes* test to evaluate the appropriateness of judicial review in this case. That analysis requires addressing two prongs: (1) Has the Respondent alleged the deprivation of a constitutional right or the violation of applicable statutes or regulations? If stigma-plus exists, it may satisfy this prong. (2) Has the Respondent exhausted all intraservice remedies? On this point, his claim falters. Exhaustion is not optional; it is a prerequisite for judicial review. Third, the District Court must determine whether stigma-plus applies and, if so, whether it triggers a liberty interest requiring a name-clearing hearing. It is a fact of law that a dishonorable discharge inherently carries stigma, but stigma alone is insufficient. The lower court must determine whether the stigma, when combined with other factors, rises to the level of a liberty interest warranting constitutional protection.

We have clarified what process is due in our opinion, and it is now the responsibility of the District Court to address these outstanding questions. Only after these determinations are made can this case properly be returned to us, if at all, for final appellate review.

REVERSED AND REMANDED.

JUSTICE STICKZA took no part in the consideration or decision of this case.

CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

No. 01-14

ZRIHEM, ET AL. *v.* TDARK99

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[February 16, 2025]

CABOT, J., dissenting, joined by TURNTABLE, C.J., and CLARKE, J.

Today, we are left with a peculiar outcome. The opinion of the Court led by Justice KHALED is simply not worth the paper it is written on. It changes the situation of the respondent in no intelligible way. It changes the law in no meaningful way, and we have not sufficiently solved the issues before us to provide the utmost clarity for the hundreds of workers employed in this state's public services. However, we cannot blame Justice KHALED for this deficiency.

Instead, the real issue with the outcome today and the fault for such a decision, or lack thereof, lies with the moronically phrased question before this court for adjudication and our failure to rephrase and re-propose it. Simply put, the plurality is a non-answer to a stupid question. Therefore, the question before the court is: What type of interest does the respondent have? That question determines this court's attitude towards at-will employment and whether we have a property interest, a fundamental liberty interest, or some other sort of constitutional interest.

First, this opinion affirms that this court has the right, or even the obligation, to raise a new legal argument *suo motu* regarding whether a property interest exists. Second, it analyzes the extent to which the Takings Clause provides appropriate protection by classifying public

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employment as "property" due to a secure expectation of tenure. In turn, we argue that a takings claim is a sufficient course of redress for a deprivation of employment and one that would have succeeded if raised in this case.

This court is both justified and obligated to raise and apply a new argument that neither of the parties did raise in their briefs where a "litigants' failure to address the legal question from the right perspective does not render us powerless to work the problem out properly." *Williams-Guice v. Bd. of Educ.*, 45 F.3d 161, 164 (7th Cir. 1995) (Easterbrook, J.) Indeed, courts across the Union of Columbia would choose to apply a more harmonious interpretation raised sua sponte "rather than apply an incorrect rule of law to the parties' circumstances." *Ibid.* We adhere to that view today.

The amount of new information, claims, defences and availing interests raised by the parties on appeal have led their briefs to constitute something closer to "[a] skeletal 'argument' ... [that] does not preserve a claim... Especially not when the brief presents a passel of other arguments." See *United States v. Zannino*, 895 F.2d 1, 17 (1st Cir. 1990); *Carducci v. Regan*, 714 F.2d 171, 177 (D.C. Cir. 1983). Parties are under a general obligation to "make their pleadings straightforward, so that judges and adverse parties need not try to fish a gold coin from a bucket of mud." *United States ex rel. Garst v. Lockheed-Martin Corp.*, 328 F.3d 374, 378 (7th Cir. 2003). It is precisely because "...judges are not like pigs, hunting for truffles buried in briefs" *United States v. Dunkel*, 927 F.2d 955, 956 (7th Cir. 1991) that we cannot be seriously expected to entertain such procedural tomfoolery which risks obscuring the substantive constitutional and liberty interests at play here.

Judicial officers are officers of unwavering authority and impartiality. It is that very authority that compels us to address ambiguities that jeopardize the rights of individuals. Consequently, we must do our utmost to avail the respective parties' interests to deliver an outcome consistent with the principles of natural justice.¹ The real tension here arises not

¹ Barry A. Miller, *Sua Sponte Appellate Rulings: When Courts Deprive Litigants of an Opportunity to Be Heard*, 39 San Diego L. Rev. 1253, 1268 (2002).

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from our decision to bring this substantive issue up *sua sponte* but from this power being “a byproduct of the merger of law and equity”. Miller, *supra* note 1, at 1263. The disagreement that will come with this point arises from a difference of opinion as to whether the courts have an obligation to see that ‘justice’ is done and to mitigate the harsh effects brought about by the common law. The much more learned, intelligent and thoughtprovoking academics in this field find there are “no discernible differences” with issues raised suo motu on the grounds mentioned beforehand.² Indeed, “[c]ourts are more likely to raise a new issue without briefing if there is little additional work involved.” Miller, *supra* note 1, at 1284 (citing Allan D. Vestal, *Sua Sponte Consideration in Appellate Review*, 27 *Fordham L. Rev.* 477 (1958-59)). However, courts have an obligation to address a new question or the same question with a new answer if the answer is “clear” *Turner v. City of Memphis*, 369 U.S. 350, 353 (1962) or if “the proper resolution is beyond any doubt” Singleton, 428 U.S. at 121 (*citing Turner*, 369 U.S. 350)). Again, the answer here is not only clear, but the application of the Takings Clause is the proper resolution beyond any doubt.

The “plain error” exception which derives itself from criminal procedure but is also applied to civil cases³ places an inherent duty on the court to correct a plain error that is viewed as “absolutely vital” to a party’s interests that the court “feels [itself] at liberty to correct”. See *Wiborg v. United States*, 163 U.S. 632, 658 (1896).⁴ Plain error exists when “the errors were obvious, or if they otherwise seriously affect the fairness, integrity or public reputation of judicial proceedings.” See *United States v. Marcus*, 130 S. Ct. 2159, 2164 (2010) (*citing Puckett v. United States*, 556 U.S. 129, 142 (2009) (internal quotation marks omitted)). Again, the

² Robert J. Martineau, *Considering New Issues on Appeal: The General Rule and the Gorilla Rule*, 40 *Vand. L. Rev.* 1023, 1054 (1987). See also, Joan Steinman, *Appellate Courts as First Responders: The Constitutionality and Propriety of Appellate Courts’ Resolving Issues in the First Instance*, 87 *Notre Dame L. Rev.* 1521 (2012).

³ See, e.g., *Holmes v. Texas A&M Univ.*, 145 F.3d 681, 685–86 (5th Cir. 1998) (*citing Highlands Ins. Co. v. Nat’l Union Fire Ins. Co.*, 27 F.3d 1027, 1031–32 (5th Cir. 1994)); *Chute v. Sears Roebuck & Co.*, 143 F.3d 629, 631 (1st Cir. 1998); *Crawford v. Falcon Drilling Co.*, 131 F.3d 1120, 1123–24 (5th Cir. 1997); see also *In re Celotex Corp.*, 124 F.3d 619, 631 (4th Cir. 1997) (recognizing civil plain error, but possibly envisioning a standard harsher than in criminal cases).

⁴ See also *United States v. Atkinson*, 297 U.S. 157 (1936); Miller, *supra* note 1, at 1283 (supporting the proposition that the “plain error” exception is applied in civil cases as well)

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courts will consider new legal positions (i.e., ‘pure questions of law’) on the condition that they need no further factual development.⁵ These ‘pure questions of law’ have long included the application and interpretation of constitutional provisions.⁶ See *Nelson v. Adams*, 529 U.S. 460, 469-70 (2000). These have also included decisions which have been classed as ones of “constitutional magnitude” (*quoting Real Estate Bar Ass’n for Mass., Inc. v. Nat’l Real Estate Info. Servs.*, 608 F.3d 110, 125 (1st Cir. 2010)).

The doctrine of constitutional avoidance is just that, a doctrine, that is malleable at the will of the courts. The doctrine attempts to strike a balance between the equitable and common law functions of the courts. This can be seen through its primary purpose serving as a restraint on judicial power. For that, my colleagues who disagree with this analysis may be forgiven. Any objection on the grounds of constitutional avoidance is roundly defeated on the basis that we have an obligation to settle matters of constitutional importance if those are matters of “general impact” or “great public concern.” *Interactive Gift Exp., Inc. v. CompuServe Inc.*, 256 F.3d 1323, 1345 (Fed. Cir. 2001)). The consideration of matters of public interest or those that invoke the implementation and enforcement of public policy initiatives will also draw the courts in to decide legal issues by their own motion.⁷ Frankly, I see no good reason to shirk from that responsibility now.

In many cases there need not be any substantive reasoning, justification or compelling interests to diverge from the presented legal questions before the court.⁸ It is because “if [judges] think a case is really important or if the judges really want to reach a particular result” they necessarily have an obligation to intervene and prevent an injustice from occurring, such as in the case here. *Miller*, *supra* note 1, at 1287. Again, this is wholly consistent with our obligations, following the fusion of both systems, to “soften and mollify the extremity of the law” *The Earl of Oxford’s Case*

⁵ See *Roosevelt v. E.I. Du Pont de Nemours & Co.*, 958 F.2d 416, 419 (D.C. Cir. 1992)

⁶ See also *Ninestar*, 667 F.3d at 1382; *Consol. Coal*, 351 F.3d at 1378.

⁷ See *Curry v. Beatrice Pocahontas Coal Co.*, 67 F.3d 517, 522 (4th Cir. 1995) (supporting intervention in matters of public interest). See also *Nuelsen v. Sorensen*, 293 F. 2d 454, 462 (9th Cir. 1961); *Cont’l Ins. Cos. v. Ne. Pharm. & Chem. Co.*, 842 F.2d 977 (8th Cir. 1988) (supporting intervention in matters of public policy).

⁸ *Corus Staal BV v. United States*, 502 F.3d 1370, 1379 (Fed. Cir. 2007).

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(1615) I Ch Rep 1, per Lord Chancellor Ellesmere. However, as mentioned before this is not a decision taken on a whim, this is a decision and subtle divergence from the legal question presented to resolve the matter simply, clearly and in compliance with the existing principles of common law that bind our decision-making process here. *See Erie Railroad Co. v. Tompkins*, 304 U.S. 64 (1938).

It is a fundamental principle of American jurisprudence that “[w]hen an issue or claim is properly before the court, the court is not limited to the particular legal theories advanced by the parties, but rather retains the independent power to identify and apply the proper construction of governing law.” *Kamen v. Kemper Financial Services, Inc.*, 500 U.S. 90, 99 (1991). We do nothing short of that here today.⁹

Throughout this portion of the opinion, I shall put forward the case that workers across the State of Mayflower, including the respondent, have a constitutional property right in their job which the state takes away with at-will employment rules, both through legal rule and statute. Such a claim finds its origins and sanctuary in the Fifth Amendment’s Takings Clause.

A

It is important to set a pretext for where we are currently in the development of economic rights under the Takings Clause by giving a quick analysis of the Due Process Clause on this matter. The current position in Union of Columbia law is that economic rights are not privileges or immunities which give rise to protection – nor are they protected by the Due Process and Equal Protection clause of the Fourteenth Amendment.¹⁰ The seminal case for this proposition is the *Slaughter-House Cases*, 83 U.S. (16 Wall.) 36 (1873) with Justice Miller writing for the majority in its 5-4 opinion. The holding essentially gutted the Privileges and Immunities Clause. *Id.* at 74.¹¹ It was a step in the wrong direction and

⁹ “[A] court may consider an issue ‘antecedent to . . . and ultimately dispositive of ‘the dispute before it, even an issue the parties fail to identify and brief.’” (quoting *Arcadia v. Ohio Power Co.*, 498 U.S. 73, 77 (1990)).

¹⁰ David S. Bogen, *Slaughter-House Five: Views of the Case*, 55 *Hastings L.J.* 333, 337 (2003).

¹¹ “It is a little remarkable, if this clause was intended as a protection to the citizen of a State against the legislative power of his own State, that the word citizen of the State should be

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antithetical to legislative purpose and intent behind the Fourteenth Amendment's ratification, namely, to give rise to fundamental rights including through the entrenchment of the Civil Rights Act 1866.¹² We would, find refuge for the right to earn a living here if such an awful decision were not handed down in *Slaughter-House*.

This “demise” of a central component of the Fourteenth Amendment has seen many lawyers, including Justices Thomas and Chief Justice Rehnquist, to understand that a correction to Justice Miller's antithetical interpretation of the Fourteenth Amendment can only be reevaluated “in an appropriate case” where we as judges should “endeavor to understand what the framers of the Fourteenth Amendment thought it meant”. *Saenz v. Roe*, 526 U.S. 489, 527-528 (1999) (THOMAS, J., dissenting, joined by REHNQUIST, C.J.) It is because of this idiosyncrasy that our approach to economic rights in Union law is inconsistent with the laws, purpose and constitutional intent that we find applicable in the State of Mayflower. Instead, the Fifth Amendment's Taking Clause State protection against at-will employment requires strict scrutiny analysis rather than the rational basis test that is presented by the petitioners.

It is precisely because the states have always been viewed as laboratories for the expansion of rights, liberties and other socio-economic and legal experiments that we find the right to earn a living in our constitution today.¹³ Our decision remains consistent with that sentiment.

B

The criticisms of *Wood's Rule* and the implementation of at-will, that was first recognized as good law by the New York Court of Appeal, are

left out when it is so carefully used and used in contradistinction to citizens of the United States in the very sentence which precedes it. It is too clear for argument that the change in phraseology was adopted understandingly and with a purpose.”

¹² See CONG. GLOBE, 39th Cong., 1st Sess. 2459 (1866) (Rep. Stevens); *id.* at 2462 (Rep. Garfield); *id.* at 2465 (Rep. Thayer); *id.* at 2467 (Rep. Boyer); *id.* at 2498 (Rep. Broomall); *id.* at 2502, 2513 (Rep. Raymond); *id.* at 2511 (Rep. Eliot); *id.* at 2539 (Rep. Farnsworth); *id.* at 2542-43 (Rep. Bingham); *id.* at 2765 (Sen. Howard); *id.* at 2896 (Sen. Doolittle); *id.* at 2961 (Sen. Poland); *id.* at app. 219 (Sen. Howe); *id.* at 3035 (Sen. Henderson).

¹³ See *New State Ice Co. v. Liebmann*, 285 U.S. 262, 311 (1932) (BRANDEIS, J., dissenting) (“It is one of those happy incidents of the federal system that a single courageous State may, if its citizens choose, serve as a laboratory; and try novel social and economic experiments without risk to the rest of the [Union].”)

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plentiful.¹⁴ The idea that public sector workers, like in the case of the respondent here, have the ability to engage in the freedom to contract with a reasonable employer (the state) is misplaced in our context. See *Adair v. United States*, 208 U.S. 161, 174 (1908) (treating at-will doctrine as equivalent to liberty of contract). It is based on the idea that protectionist regulations and for-cause provisions are already implemented or at least offered to be implemented in their contracts.¹⁵ This is not the case, in fact it is to the contrary that such occurs.

It is antithetical to the doctrine of freedom to contract that the courts and legislatures-imposed regulations onto employees, who had no bargaining power, to the widespread glee and benefit of their employers. See James Atleson, *Confronting Judicial Values: Rewriting the Law of Work in a Common Law System*, 45 *Buff. L. Rev.* 435, 446-47 (1997). The supposed theoretical basis for at-will employment is simply inapplicable to our state—namely that contractual flexibility will increase economic productivity (a consideration that is alien to our state). The majority’s complacent adherence to the at-will rules “instead of narrowly tailoring its applicability in order to remain relevant to our ROBLOX platform, is reckless and it sends the wrong message to our lower courts” *State of Mayflower v. TrexeoDev* (2024) (slip. op. 4) (TURNTABLE, C.J., dissenting joined by CABOT, J.). Here, at-will employment on ROBLOX is nothing but a tool to be used as a ‘gotcha’ card in litigation and as a way of reminding employees that we have not really moved away from the master-servant doctrine.

Now if we asked workers across the state if they believed they could

¹⁴ Paul C. Weiler, *Governing the Workplace* (1990) (describing the inadequacy of the at-will rule as a default); Rachel Arnow-Richman, *Modifying At-Will Employment Contracts*, 57 *B.C. L. Rev.* 427, 429-34 (2016) (criticizing the at-will rule’s misfit within broader contractual principles); Kate Andrias & Alexander HertelFernandez, *Ending At-Will Employment: A Guide for Just Cause Reform*, *Roosevelt Inst.* 4-7 (2021), Elizabeth Anderson, *Private Government: How Employers Rule Our Lives (and Why We Don’t Talk about It)* (2017) (relying on the at-will rule as a prime example for the authoritarian nature of work); Joseph E. Slater, *The American Rule That Swallows the Exceptions*, 11 *Emp. Rts. & Emp. Pol’y J.* 53, 93-108 (2007) (criticizing the stickiness of the at-will default).

¹⁵ See Jane Berger, *A New Working Class: The Legacies of Public-Sector Employment in the Civil Rights Movement* 4 (2022); Gary Minda, *The Common Law of Employment At-Will in New York: The Paralysis of Nineteenth Century Doctrine*, 36 *Syracuse L. Rev.* 939, 946-49 (1985)

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be fired for any reason: for good, for bad, for middle-of-the-road or for no reason at all I would be surprised if any sizeable amount of them believed their employer could dismiss them at their discretion. There is an expectation that such an at-will regime does not exist, especially not in public employment. At-will rules are regularly cited as justification for the sub-par conditions of workers and serve to act as a ‘backup’ provision that serves to unfairly bloat the litigatory inventory employers have at their disposal to subjugate their employees. They have the effect of unconstitutionally chilling the voices of employees across the State, including in public services, where we would expect their voices to be protected most to encourage a safe environment to report abuse and root out unfair practices. At-will rules displaced a web of common-law doctrines and legal assumptions under which employment duration was a year by default, and termination before a year had to be for cause and noticed. In fact, Court’s opinion makes little sense when they recognize that the respondent was fired for cause (i.e., a specific reason).

A constitutional claim under the Takings Clause is the solution for public sector workers, not least because their property interest is easily identifiable and actionable as the defendant is by-default a state-actors.

C

Job security, as mentioned above, implicitly suggests workers possess a constitutional property right in their jobs.¹⁶ In the public sector, as in the private sector, the default termination rule is employment at will. *See, e.g., Cafeteria & Rest. Workers Union v. McElroy*, 367 U.S. 886, 896 (1961) (“It has become a settled principle that government employment, in the absence of legislation, can be revoked at the will of the appointing officer.”) For the purposes of this analysis, we set aside the existence of the state at-will statute, which under our interpretation is unconstitutional, on the basis that the court’s majority fails to rely on such. Courts overwhelmingly affirm the connection between public-sector job security and property rights. These terms—job security and property rights on the job— are synonymous. The most common term for a property-granting job-security employment arrangement is “just cause.” If public-sector

¹⁶ Kenneth A. Sprang, *Beware the Toothless Tiger: A Critique of the Model Employment Termination Act*, 43 Am. U. L. Rev. 849, 881-82 (1994).

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employees prove that an employer can terminate them only for “just cause,” courts recognize that these employees have property rights in their positions. *See e.g., Mancini v. Northampton County*, 836 F.3d 308, 315 (3rd Cir. 2016) (holding that just-cause employment entails a protected property interest in the job). Following Roth, the test courts use is whether the employee could reasonably expect their employment would not be terminated without cause.

1

The Union Supreme Court has been light on detail as to whether “property” means the same thing in all clauses of the Union Constitution and in all contexts. We do know that constitutional property stretches beyond land and physical “things.” A state can unconstitutionally “take” a contract, for example. James Y. Stern, *Property’s Constitution*, 101 Calif. L. Rev. 277, 279 (2013). There are three theories espoused by Garci Racabi in his Article¹⁷ – all of which are substantively convincing in establishing a constitutional property interest in one’s job. First, the physical theory justifies a property interest as originating from the employee’s interest in attending and accessing the workplace every day.¹⁸ The second theory relies upon property relations connoting a recognition of stability. Property in the job entails the legal entrenchment of stability between an employer and employee—this is especially true in those that serve in public-service jobs who also have a commitment that impacts and involves the wider-community. Racabi, *supra* at 17, puts it best by stating “[a]ll workers already enjoy an almost complete in rem right against intervention in their work. Job security closes the in rem loop by immunizing workers from certain actions by employers. Thus, job security is property because workers are protected from arbitrary interference in their job against all.” The third theory relies on the takings clause being a sufficient cause of action and in turn giving rise to a constitutional property interest. Although this third theory is circular by itself, combined with the other two theories, it gives rise to a convincing takings claim for denial, deprivation or revocation of employment for public sector employees. These theories, although derived from cases concerning

¹⁷ Gali Racabi, *At Will as Taking*, 113 Yale L.J. 2257 (2024).

¹⁸ See Yiran Zhang, *Home as a Non-Workplace*, B.U. L. Rev. (forthcoming 2024/2025).

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job security as a property entitlement in the public sector and under the Due Process Clause, are not limited to those contexts, and apply equally to Takings Clause claims.

We choose not to investigate private employment under the Takings Clause analysis here (1) because it is not invoked by the parties here and (2) it is but a mere technicality to just transpose the protections and expectation interests when the time comes.

2

Constitutional doctrine has explicitly rejected the premise that public-sector employment is a mere privilege and public-sector employment as property is still good and evolving law.¹⁹ It is precisely because “due-process right[s] provide no substantive protection for public sector employees and immunize[s] legislative deprivations of property” that “expanding claims beyond the Due Process Clause to the Takings Clause would be beneficial”. Racabi, *supra* at 17. Since legislative bodies and their statutory outputs are not immune against takings claims it follows that a takings claim is therefore the most sufficient cause of action possible for a claimant here. Due process rights are also considered to be exhausted by the legislative body’s deliberation, no similar assumption exists for takings, again providing the claimant with a sufficient ‘property’ leg to stand on. Whilst the precise definitions of property under takings claims and due process claims differ slightly, we do not see this as a problem. A simple look to the historical recognition of employment as property in the English common law is sufficient for us.

3

At-will rules are viewed here as a taking.²⁰ The Fifth Amendment to the Constitution stipulates that “private property [shall not] be taken for public use, without just compensation. The basic takings claim requires

¹⁹ See, e.g., *Garrity v. New Jersey*, 385 U.S. 493, 499-500 (1967)

²⁰ “For most people, their job is their principal asset. They have invested their skill and their strength in the job: Just as the Government may . . . for the public good, deprive a person of land and other property, so it may be . . . that a person may have to sacrifice his job. But in both cases a rule of social ethics requires that he who sacrifices an asset should receive a fair amount of compensation.” See Otto KahnFreund, *Labour Law: Old Traditions and New Developments* 38 (1968).

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three elements: (1) a property (2) being taken for public use (3) without just compensation. See Michael B. Kent, Jr., Public Pension Reform and the Takings Clause, 4 Belmont L. Rev. 1, 14 (2017). Takings involve benefits received at the expense of another and not simply the deprivation or abolition of property autonomously. With at-will employment, employers enjoy the taking of workers' reliance interests. Essential in this analysis is "whether the government has physically taken property for itself or someone else—by whatever means," thus triggering [a] physical takings claim, "or has instead restricted a property owner's ability to use his own property," thus triggering [a] regulatory takings claim. *Cedar Point Nursery v. Hassid*, 594 U.S. 139 (2021). In this case and for the purposes of our argument, a deprivation of employment by the state constitutes a categorical (a.k.a. 'physical') takings claim.

Under the reliance theory, at-will rules explicitly remove the most significant benefit workers draw from just-cause employment: a legitimate right of reliance. Under this presupposition a takings claim against an at-will regime can be resurrected in a protective manner thus preventing public-sector workers from changes in their termination regime. Government at-will employees lack certain constitutional protections that workers with job security enjoy in a seemingly unfair dichotomy to us. Takings claims ought to have a role in the constitutional toolbox of public sector worker's liberty and employment-driven fight against the power of the state. Removing workers' job security is an unconstitutional taking and the opinion of the Court makes a grave mistake in failing to realize this today.

* * *

With sorrow—for this Court, but more, for the many hundreds of workers employed across the State of Mayflower's public services who have today been denied the existence of a fundamental constitutional protection—we respectfully dissent

Opinion of the Court

CASES ADJUDGED

IN THE

SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

No. 02-14

IN RE: ADVISORY OPINION PERTAINING TO THE STATE BAR
ON PETITION FOR ADVISORY OPINION FROM THE ATTORNEY GENERAL

[April 5, 2025]

NOTABLE, J., delivered the opinion of the Court.

Many years past, the Senate submitted a bill to the then-Governor, which was soon after enacted into law. The Attorney General has ever since been obliged to administrate compulsory initial arbitration in civil matters brought against the Government—the disposition whereof, should all relief sought by the plaintiff be granted, being of a force purportedly unreviewable by the courts. 3 M.S.C. 1 § 8217(b).

The State Bar, belonging to the judicial branch, is doubtless an emanation of the Government. See Mayf. Const. Art. X, § 8. When a complaint against it was recently made, the Attorney General thus took notice for the purpose of discharging his aforementioned statutory duties.

It is a power of the State Bar to confer upon persons the privilege to practice law and, conversely, to revoke such a privilege. . But the Attorney General proffers, upon review of the complaint, that it is a “potential” that the State Bar acted *ultra vires* in a particular attempt to wield this power; accordingly, he petitions this Court for an advisory opinion¹ as to what recourse he may effectuate following arbitration. Pet. for Adv. Op.

¹ Article X, section 9 of the Mayflower Constitution provides this Court with the discretion to issue its opinion on important questions when requested by, *inter alia*, the Attorney General. It does so now.

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1. The answer is none.

As in each of our sister states, one of the basic functions of the Government's judicial branch is the regulation of the practice of law. Mayf. Const. Art. X, §§ 6, 8; 5 M.S.C. 1 §§ 1101.1-1111.4; see also, *e.g.*, *Wash. Staet Bar Ass'n v. State*, 125 Wash. 2d 901, 907 (1995) (noting the judicial branch's regulation of the practice of law in Washington); *In re Thompson*, 574 S.W.2d 365, 365 (Mo. 1978) (noting the judicial branch's judicial branch's regulation of the practice of law in Missouri); *People ex rel. Chicago Bar Ass'n v. Goodman*, 366 Ill. 346, 349 (1937) (noting the judicial branch's judicial branch's regulation of the practice of law in Illinois). So, by what authority might the Attorney General presume to determine for the judicial branch who may practice law, or coerce it into reversing such a determination? There is none; for no authority exists whereby he might offend the doctrine of the separation of powers.

It is well-settled that the purpose of separating the powers within a government between its branches is done “not to promote efficiency but to preclude the exercise of arbitrary power” and “save the people from autocracy.” *Myers v. United States*, 272 U.S. 52, 293 (1926) (BRANDEIS, J., dissenting). If this Court permitted the Attorney General to, under the guise of arbitrating claims, commandeer the executive, legislative, or judicial branches' constitutional prerogatives, no solace would remain for the governed. Our democracy would be imperiled and an autocracy we would have.

Opinion of the Court

CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER
AT JANUARY TERM, 2025

No. 01-13

STATE OF MAYFLOWER *v.* ISPILLEDMYTACOS

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[June 1, 2025]

CABOT, J., delivered the opinion of the Court. KHALED, J., filed a concurring opinion. NOTABLE, J., filed an opinion concurring in judgment.

On September 9, 2024, the State of Mayflower filed this criminal case against Respondent for charges of assault, murder, and brandishing of a firearm. During the case’s infancy, it was revealed that the State’s prosecutor Deputy Attorney General ElloM8HowAreYou, a former Clark County Sheriff’s Office employee, was clearly driven by a personal animus against Respondent. Respondent had previously exposed the Deputy Attorney General for misconduct committed during his employment in the Clark County Sheriff’s Office; this led to his employment being terminated. As a result of this, Respondent filed on October 9, 2024, and the District Court granted 8 days later a motion to disqualify the Deputy Attorney General. Despite this, the Deputy Attorney General continued to use his office in the Department of Justice to secretly participate in the case in defiance of the District Court’s disqualification order by discussing prosecution strategies with his subordinates, discussing the case with the State’s key witness, and participating in the case behind the scenes.

On October 25, 2024, Respondent filed a motion to dismiss the case. 2 days later, after hearing arguments by both parties, the District Court

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granted the motion and dismissed the case with prejudice. The District Court found that the Deputy Attorney General’s ‘violation of the disqualification order and continued involvement in the prosecution’s strategy within the case has compromised the impartiality of the prosecution and irreparably prejudiced the Defendant’s right to a fair trial.’ The State appeals before this Court seeking to overturn the dismissal with prejudice on the grounds that the District Court’s application of prejudice was an abuse of discretion.

II

“[R]ulings regarding alleged prosecutorial misconduct are reviewed for abuse of discretion.” *See, e.g., United States v. Reyes*, 660 F.3d 454, 461 (9th Cir. 2011). The standard of abuse of discretion is a high one to satisfy. It requires, in essence, that the appellate court hold that either (1) the lower court acted arbitrarily without the employment of good reasoning or (2) exceeded the bounds of reasonableness and in doing so committed a substantial injustice. This appeal, and most other appeals on the grounds of abuse of discretion before this Court, will be decided on the grounds of reasonableness. Review on the grounds of reasonableness requires that the trial judge must have acted so-illogically and arbitrarily that no reasonable judge could have come to the same conclusion. That is a high bar for the State to fulfil on this appeal, and rightfully so. The question before us therefore is: Did the trial judge act unreasonably when dismissing the case with prejudice on the grounds of prosecutorial misconduct? The answer here can only be *no*.

III

It is incumbent upon all judges to ensure that attorneys are held to the highest possible standards when “representing defendants in criminal cases in their courts.” *McMann v. Richardson*, 397 U. S. 759, 771 (1970). *See also United States ex rel. Darcy v. Handy*, 203 F.2d 407, 427 (CA3 1953) (“gross incompetence or faithlessness of counsel as should be apparent to the trial judge . . . call[s] for action by him”), cert. denied, 346 U. S. 865 (1953). The State’s claim that the misconduct of the former Deputy Attorney General did not cause actual prejudice to the defendant is irrelevant. It is the appearance of prejudice and overzealousness that undermines the core purpose of the criminal law. Namely that the State, not

Opinion of the Court

aggrieved persons, pursue prosecutions against defendants in the name of the People of the State of Mayflower. When the conduct of a prosecutor subverts the irreducible minimum standard that a prosecution represents “the interests of all people in our society” the Court must remedy that through whatever means necessary, including dismissing the case with prejudice. Vinegrad, *The Role of the Prosecutor*, 28 Hofstra L. Rev. 895, 903 (2000).

“[T]he courts have not only the supervisory power but also the duty and responsibility to disqualify counsel for unethical conduct prejudicial to his adversaries,” *Ceramco, Inc. v. Lee Pharmaceuticals*, 510 F.2d 268 (2d Cir. 1975). The courts have wider supervisory jurisdiction to apply prejudice to any dismissal so long as that decision is based upon publicly available evidence, is logical and well-reasoned. “[R]eversals [...] under the court’s supervisory power must be approached ‘with some caution’ and with a view toward balancing the interests involved.” *United States v. Hastings*, 461 U. S. 499, 461 U. S. 506-507 (1983) (citations omitted) (*quoting United States v. Payner*, 447 U. S. 727, 447 U. S. 734 (1980)). However, when sufficiently important, we have not hesitated to find actual prejudice irrelevant when utilizing supervisory authority. *See, e.g., Ballard v. United States*, 329 U. S. 187 (1946) (using supervisory power to find error in exclusion of women from grand jury, and dismissing indictment). We recognize that Ballard doctrinally died long ago, but Jesus was resurrected, and so now follows Ballard. Therefore, because the “appointment of an interested prosecutor creates an appearance of impropriety that diminishes faith in the fairness of the criminal justice system in general” the courts have wide-ranging supervisory authority to deal with and remedy such violations as they see fit. *Young v. United States ex rel. Vuitton et Fils SA*, 481 U.S. 787, 811 (1987).

B

However, for the sake of clarity a two-part test should be formulated and adopted by the lower courts so that attorneys and judges alike, have an understanding as to what we will and will not find to be an abuse of discretion in relation to attorney disqualification.

1. The court may infer from the direct evidence available to

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them that the prosecutor has engaged in misconduct or mishandled the proceedings.

2. Even without direct evidence, the court may impute an intention—based on the prosecutor’s conduct throughout the proceedings—that the State’s prosecution has not been, or is no longer, unconditionally exercised in the public interest.

In either situation, the proper remedy will almost certainly be a dismissal of the case with prejudice. Any suggestion to the contrary would be illogical and would fail to provide a meaningful deterrent to bad-faith prosecutions, whilst also undermining the baseline ethical and professional standards universally expected of prosecutors. This reasoning reflects our shared understanding that it is the State—not the defendant—that should bear the consequences of prosecutorial misconduct. This view finds refuge in the fact that “[d]ue process is flexible and calls for such procedural protections as the particular situation demands.” *Morrissey v. Brewer*, 408 U. S. 471, 481 (1972). As a result, the District Court’s dismissal with prejudice was a valid, reasonable and noble exercise of judicial supervisory power.

* * *

Therefore, because the State forfeits its right to prosecute when the purpose and viability of that prosecution are undermined by its own misconduct, the decision of the District Court is hereby,

AFFIRMED.

JUSTICE STICKZA and JUSTICE MANDATORY took no part in the consideration or decision of this case.

KHALED, J., concurring

CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER
AT JANUARY TERM, 2025

No. 01-13

STATE OF MAYFLOWER *v.* ISPILLEDMYTACOS
ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[June 1, 2025]

KHALED, J., concurring.

Although I am in full agreement with the judgment made by my brother CABOT, I find it necessary to set out my own view of the matter. For though the law in its formalities may be observed, there are occasions where the conduct offends not only the rule, but the conscience.

This case is not a referendum on guilt or innocence. It is a reckoning with process conducted. The respondent was indicted for grave offences second-degree murder, assault with a deadly weapon, the unlawful discharge of a firearm as mentioned. These charges are grave, but seriousness of charge cannot excuse the manner of prosecution. For it is not only the ends of justice which matter, but how those ends are pursued.

At the center of the controversy stood the Deputy Attorney General, who prior to the commencement of the proceedings, had a personal history with the defendant, marked by animus, grievance, and fallout. That same history led to his formal disqualification by the lower court. Despite this, it emerged that the Deputy Attorney General continued to involve himself in the case, providing guidance to the prosecution, interacting with a key witness, and influencing legal strategy despite the clear order of the court to the contrary. Further concerns were brought when the State, on the eve of the trial, disclosed exculpatory evidence that ought to have been provided in the pre-trial phase. These late disclosures revealed not only the Deputy's continued involvement, but whether the

prosecution had honored its Brady obligations. The trial court determined that the effect of these improprieties rendered a fair trial impossible and dismissed with prejudice. The State brings this on appeal contending that lesser remedies were available and dismissal was disproportionate. We do not agree. The judge acted within the bounds of discretion.

I

There are occasions where the conduct of a prosecution is so improper that the court must put a stop to it altogether. Not because the accused is necessarily innocent, but because the process has become incurably tainted. In such circumstances, dismissal is not a gift to the defendant but a defence of the Court itself.

There is a principled line between error and rot. Ordinary trial error may be remedied by instruction or appeal. But structural misconduct, especially by officers of the state, goes to the roots. Proceedings conducted under such conditions are not just defective; they are void. Courts do not supervise such matters to salvage verdicts. They intervene to uphold the process. It is for this reason that dismissal may be warranted even absent a showing of prejudice. *See United States v. McCord*, 509 F.2d 334, 352 (D.C. Cir. 1974) (“The principle involved is not merely one of fairness to the defendant but also one of maintaining respect for the law and promoting confidence in the administration of justice.”)

We do not solely look at whether a defendant has suffered injury, but whether the conduct, if countenanced, would corrode public confidence in the administration of justice. The legitimacy of our courts is not preserved by closing our eyes to misconduct merely because a conviction might seem a foregone conclusion. That is not justice. Federal courts, constrained by Rule 52(a), have declared that prosecutorial error must be “harmless” to warrant no remedy. *See Bank of Nova Scotia v. United States*, 487 U.S. 250, 255–56 (1988). But we do not sit as a federal tribunal. No statute of the State compels us to weigh the harm to the Prosecution before we act to preserve the dignity of the bench. Our rules contain no analogue to Rule 52(a), and Nova Scotia does not bind the Court.

Instead, we assert what Courts has long acknowledged: that courts “may invoke [their] supervisory power to dismiss indictment only for flagrant prosecutorial misconduct that has clear basis in law and fact, and when necessary for preservation of integrity of judicial process.” *United States v. Rasheed*, 663 F.2d 843, 850 (9th Cir. 1981). That duty inheres even where no express rule prescribes the remedy. As the Union Court

KHALED, J., concurring

once declared, the “authority of a court to dismiss sua sponte ... has generally been considered an ‘inherent power,’ governed not by rule or statute but by the control necessarily vested in courts to manage their own affairs.” *Link v. Wabash R. Co.*, 370 U.S. 626, 630–31 (1962).

The conduct in this case is not an isolated lapse, but a sustained campaign of prosecutorial misconduct. The Deputy Attorney General, though formally disqualified from the case for his entanglement in the facts, did not retreat. Instead, he lingered reviewing filings, directing subordinates, and shaping the very case from which he had supposedly been removed. And the courts have confronted such patterns before. In *United States v. Omni Int’l Corp.*, 634 F. Supp. 1414, 1438 (D. Md. 1986), the government created and altered documents during pending litigation, presented untrue testimony, and remained silent through a ten-month hearing permeated by what the court called a “lack of candor” and “egregious error.” The misconduct “was not isolated but longstanding,” and the court concluded it was “as extreme as any found in the reported decisions.” So is here. The supposed recusal of the Deputy Attorney General was mere pantomime; in substance, his hand was visible on every page.

Worse still, the prosecution secretly contacted a key institutional witness without informing the defense or the court. The result was that the witness became inaccessible and, more importantly, preconditioned. Such conduct offends the adversarial process and compromises the right to confront witnesses on neutral ground. *United States v. Aguilar*, 831 F. Supp. 2d 1180 (C.D. Cal. 2011), offers a telling parallel: there, the court condemned the prosecution’s “sloppy, incomplete, and overzealous investigation,” which forced the defense to “devote enormous effort to addressing the misconduct.” *Id.* The same institutional overreach defines this case.

And then, like a final nail in the coffin, came the Brady violations. The government withheld crucial evidence, revealed only when it suited them, if at all, in what defense counsel correctly termed “midnight disclosures” (see Transcript). It was, as the court in *United States v. Fitzgerald*, 615 F. Supp. 2d 1156, 1159–60 (S.D. Cal. 2009), said, “flagrant” misconduct. The government “recklessly disregarded its discovery obligations,” kept no proper discovery log, and “appeared unwilling to own up to its conduct.” The result was prejudice by accumulation. *See also United States v. DeMarco*, 407 F. Supp. 107, 115 (C.D. Cal. 1975) (“The government cannot cloak its failure to disclose by later arguing that the impact was minimal.”)

II

It may be asked: was the defendant prejudiced? The answer is as plain as day despite the question framed to us in the initial brief. But even if he were not, the court must act. To say that alternative remedies might suffice is to misapprehend the injury. The wrong here is not merely to the defendant's tactical position; it is to the legitimacy of the process itself. This is not a matter of "alleged" prejudice; it is demonstrated, documented, and compounded. As the Ninth Circuit held in *United States v. Chapman*, 524 F.3d 1073, 1085 (9th Cir. 2008), even if the government's misconduct "does not rise to the level of a due process violation, the court may nonetheless dismiss under its supervisory powers." *See also United States v. Banks*, 383 F. Supp. 389, 393 (D.S.D. 1974) ("It is unnecessary to reach the constitutional question of whether the prosecution's conduct had prejudiced the trial to the point that due process was offended... [because] a dismissal under the court's supervisory power was warranted.")

* * *

Dismissal with prejudice is not a windfall. It is not a punishment. It is a declaration that this proceeding, from the moment it was infected, lost the qualities necessary to command the law's respect. The trial court's dismissal was not a discretionary indulgence. It was a constitutional necessity. I therefore respectfully concur.

CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER
AT JANUARY TERM, 2025

No. 01-13

STATE OF MAYFLOWER *v.* ISPILLEDMYTACOS

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[June 1, 2025]

NOTABLE, J., concurring in judgment.

The Executive’s “obligation to govern impartially is as compelling as its obligation to govern at all”; hence, “while [prosecutors] may strike hard blows, [they are] not at liberty to strike foul ones.” *Berger v. United States*, 295 U.S. 78, 88 (1935). Be that as it may, judges ought not trivialize dismissing a criminal case with prejudice on account of prosecutorial misconduct. Such a remedy spoils “the central purpose of a criminal trial,” which “is to decide the factual question of the defendant’s guilt or innocence.” *Delaware v. Van Arsdall*, 475 U.S. 673, 681 (1986) (*citing United States v. Nobles*, 422 U.S. 225, 230 (1975)). It has the potential to allow the most villainous of our society to evade condign punishment, not because of their own rehabilitation, contrition, or acts of restitution, but merely because of the wrongdoing of another. Needlessly condoning that potential is utterly repugnant to the foundational principles of justice, which the people hold dear.

Still, should prosecutorial misconduct alone make it nigh impractical for a defendant to refute the charges against them, no judge intent on sentencing grounded in the truth could rightly allow the case to continue. For, in such circumstances, there would be too little confidence that such a proceeding would yield the truth.

A judge intent on curing prosecutorial misconduct with their

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supervisory powers must weigh these two competing interests¹ before looking to dismiss the case with prejudice. The majority opinion poorly—and only by relying on moribund case law—denies this fact. *Ante* at 3 (“The State’s claim that the misconduct of the former Deputy Attorney General did not cause actual prejudice to the defendant is irrelevant.”).

Several decades ago, it was commonly accepted that “the supervisory power serves the ‘twofold’ purpose of deterring illegality and protecting judicial integrity.” *United States v. Payner*, 447 U.S. 727, 736 n.8 (1980). Under that view, which the majority opinion inappropriately clings to, no “rule against the exercise of supervisory power in the absence of prejudice to the defendant” was firmly established. *See, e.g., United States v. Sears, Roebuck & Co.*, 719 F.2d 1386, 1395 (9th Cir. 1983) (NORRIS, J., dissenting in part from the judgment). But times have changed.

The Supreme Court has “moved...toward a rule that a court should not use its supervisory powers to mete out punishment absent prejudice to a defendant.” *United States v. Isgro*, 974 F.2d 1091, 1097 (9th Cir. 1992); *see, e.g., Bank of Nova Scotia v. United States*, 487 U.S. 250, 254 (1988) (holding that “a district court may not dismiss an indictment for errors in grand jury proceedings unless such errors prejudiced the defendants”). So too should we, for the meritorious reason I discussed in my first paragraph.

Furthermore, dismissal of a criminal case with prejudice “encroaches on the prosecutor’s charging authority,” an act that the doctrine of separation of powers disfavors. *United States v. Simpson*, 927 F.2d 1088, 1091 (9th Cir. 1991). Thus, “[s]uch an intrusion will be permitted only in cases of flagrant prosecutorial misconduct.” *Ibid.* I note that it is unlikely, though admittedly not unthinkable, for an instance of prosecutorial misconduct to be classifiable as flagrant absent prejudice to the defendant.

I do not mean for my writing here to disagree with the judgment of the majority opinion, which affirmed the decision of the District Court, but only the outdated conception of the supervisory power used to reach that judgment.

¹ “Corresponding to the right of an accused to be given a fair trial is the societal interest in punishing one whose guilt is clear.” *United States v. Tateo*, 377 U.S. 463, 466 (1964).

Opinion of the Court

CASES ADJUDGED

IN THE

SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

No. 01-18

IN RE SINISTERINFERNAL

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[June 1, 2025]

KHALED, J., delivered the opinion of the Court. KHALED, J., filed an opinion concurring, in which NOTABLE, J., joined. CLARKE and MANDATORY, JJ., dissented.

A search warrant, narrow & modest in scope yet firm in its command, was issued for wertywer2. It authorized a search for his immediate possessions, the vehicle in his use, and a singular green Cala Jackalope. It was, as all warrants should be, an exercise of judicial restraint.

What followed was no restrained inquiry of law. The senior officer, Staff Sergeant Infernal, in a moment that can only be described as breathtaking in its audacity and contrary to the concept of the rule of law, and for the judiciary on which this State stands, instructed his subordinate to “search everything”. Not merely the possessions, or the vehicle listed, but everything.

The subject was then arrested on a fruit of a tree that had no lawful root. Accordingly, the District Court found this to be not only a violation of the Fourth Amendment but of the dignity of the court that issued the warrant. It held Mr. Infernal in contempt. He now appeals to that finding. The defense, via his attorney in the lower court, contends that this was not defiance, but confusion. The officer, they told us, was not a lawyer, nor trained in the art of legal drafting. When he had read the words “immediate possessions” he thought it meant also included “nearby objects”.

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I

The term “immediate possessions” does not render the warrant unconstitutionally vague. The law, as it stands, requires that a warrant be supported by (1) probable cause, (2) particularity, (3) a supporting affidavit, (4) be issued by a neutral and detached magistrate, and (5) avoid staleness. The petitioner urges upon us a single, earnest challenge: that the warrant is void for vagueness due to the term “immediate possessions.” He argues it is imprecise and thus falls short of the particularity required by both the Fourth Amendment and the Mayflower Constitution.

“Immediate possessions” is no vague or empty phrase. It sets a clear boundary, a line drawn firmly, closely tethered to place and time. The Fourth Amendment simply requires that a warrant “particularly describes” the place to be searched for and the items to be seized. *United States v. Grubbs*, 547 U.S. 90 (2006). It has never demanded the magistrate’s reasoning to be explicitly spelled out upon the face of the warrant itself. Indeed, the term “immediate possessions” conveys as much clarity as if the warrant stated explicitly “the trunk of a car” or “the interior of a wallet.” It informs the officer precisely where his search may venture and precisely where it must stop.

Yet here there is no such indiscriminate sweep. The phrase “immediate possessions” gives officers no carte blanche to rummage freely through personal, literary, political, or expressive materials. Rather, it sets a precise, neutral, and strictly confined limit to the immediate vicinity of the subject at the exact moment of contact.

Moreover, the petitioner’s reasoning, taken to its logical end, would invalidate countless lawful searches of immediate possessions that officers perform daily under *Terry v. Ohio*, 392 U.S. 1 (1968). Every day, across Clark, Elizabeth, New Haven, and Lee, officers No. 01-12 3 conduct precisely these limited searches based solely upon reasonable suspicion. Does the petitioner suggest all these daily Terry searches are unlawful? Surely, he cannot. If such a search is lawful without a warrant, it cannot suddenly become unlawful simply because a neutral magistrate has explicitly approved it beforehand. Such logic turns reason upon its head. Rather, the warrant merely confirms an authority already lawfully exercised by officers every day. We therefore conclude the warrant was entirely proper and constitutionally sound.

II

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The petitioner urges us to read into this statute a requirement of intent - mens rea. To support this, he cites *Morissette v. United States*, 342 U.S. 246 (1952). But that decision cannot govern us here. *Morissette* deals specifically with provisions of the United States Code (18 U.S.C. § 401), which differ markedly from our Mayflower State Code. Contempt, after all, is a special offence specifically designed to uphold the authority of the court. To imply a requirement of intent here would frustrate the statute's very purpose. Indeed, as Lord Simon observed in *Maunsell v. Olins* [1975] AC 373, 391 [UKSC], "the canons of construction are not so rigid as to require us to aim at the meaning of an Act like a blindfolded archer shooting at a target." Here, the Senate's intention was perfectly clear: the statute plainly and solely that "[a]ny player who fails to comply with the orders of a judicial officer while within a courtroom setting shall be guilty of a misdemeanor." 1 M.S.C. § 1501. The statute means exactly what it says, no more and no less. Mens rea is therefore plainly not required.

Turning finally to the petitioner's plea of "good faith": he says Mr. Infernal acted innocently, without malice. Yet such a plea is misplaced here. The good-faith exception, vital though it may be in exclusionary rule contexts, is entirely irrelevant to contempt proceedings. The exclusionary rule is a judicial remedy designed specifically to deter unlawful searches. It is not and never was a shield behind which officers may hide their deliberate disregard of judicial boundaries. As aptly stated by one commentator, "the exclusionary rule does not appear in the... Constitution but rather is a judicially created remedy for Fourth Amendment violations." 21 Campbell L. Rev. 237, 240 (1999). In contempt proceedings, civil or criminal, it holds no sway. Even if it did, it could never shield conduct clearly exceeding the warrant's lawful boundaries. See *United States v. Leon*, 468 U.S. 897, 921-22 (1984). As to whether Mr. Infernal's breach was willful or simply mistaken, that is no matter for us to decide. We are not a court of first review. Magistrate Rules granted him every opportunity for hearing; he chose not to avail himself of it. The time to protest has long since passed. And as to the injunction originally imposed by the lower court judge, it was swiftly and wisely withdrawn. We will not pronounce upon matters purely academic.

III

Yet one crucial matter remains to justify our affirmation: the petitioner challenges the fine imposed by the District Court as exceeding statutory limits set forth by the Legislature. Indeed, the fine does surpass the Legislature's restrictive limits. But the judiciary's authority to enforce its orders, through sanctions including fines for contempt, arises not from any statute but inheres in the very nature of the courts themselves. As the

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Supreme Court of the Union observed long ago:

"Certain implied powers must necessarily result to our Courts of justice from the nature of their institution...To fine for contempt—imprison for contumacy inforce the observance of order, &c. are powers which cannot be dispensed with in a Court, because they are necessary to the exercise of all others."

United States v. Hudson & Goodwin, 11 U.S. (7 Cranch) 32, 34 (1812).

Indeed, the Court has affirmed this fundamental principle, that the power to punish for contempt is "inherent in all courts," essential to the very "administration of justice." *Michaelson v. United States ex rel. Chicago, St. P., M. & O.R. Co.*, 266 U.S. 42, 65–66 (1924). While the Legislature may, of course, regulate this authority, it must never so confine it as to render it ineffective or reduce it to mere impotence. To constrain judicial power within arbitrary limits of five minutes or petty fines would strip the courts of the very essence of authority. Yet all this discussion is now academic. The Legislature has since seen fit to restore to us unfettered discretion in such matters. Thus, our ruling today is but a reaffirmation of what has now become settled law.

AFFIRMED.

CABOT, J., concurring

CASES ADJUDGED

IN THE

SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

No. 01-18

IN RE SINISTERINFERNAL

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[June 1, 2025]

CABOT, J., concurring, with whom NOTABLE, J., joined.

“When I use a word,” Humpty Dumpty said, in rather a scornful tone, “it means just what I choose it to mean, neither more nor less.” Humpty Dumpty (1979). I gleefully apply Lord Atkin’s use of this quote from Humpty Dumpty in *Liversidge v Anderson* [1942] AC 206 to concur with the opinion of the court here. The law is what we decide it is, it is what we choose it to mean, nothing more and nothing less. Whilst the Senate may have expanded the scope of the contempt statute recently, this changes very little in theory and in practice. We retain unilateral and ultimate authority over the scope of our contempt power, for it is inherently *ours* not *theirs*.

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CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER
AT JANUARY TERM, 2025

No. 01-11

LAW ENFORCEMENT TRAINING INSTITUTE, ET AL. V.
RRP_SAM10, ET AL.

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[June 29, 2025]

CABOT, J., delivered the opinion of the unanimous court.

This matter is on appeal before us after the District Court held that the use of arrest records as a conclusive prerequisite of background checks led by the Law Enforcement Training Institution (LETI) was unconstitutional. The question awaiting adjudication before us is therefore: Does forbidding individuals with arrest records from enrolling in the LETI offend the Equal Opportunity Clause of the Mayflower State Constitution? In our opinion the answer is unequivocally *yes*.

II

Petitioner’s brief accuses Judge Gobies of defying both “longstanding tradition and common sense”, yet they are guilty of the same. The court below found that strict scrutiny applied on the basis that the right to education constitutes a “fundamental” right and can be traced to the Equal Opportunity Clause of the Mayflower State Constitution. Our analysis here does not rely on the Equal Opportunity Clause conferring the “fundamental” right to education but rather supporting the *right to pursue a common occupation*—something inherent and causally connected through LETI’s unique role as the ‘pipeline’ of state-wide law enforcement employment. Individuals have no choice if they wish to serve as full-time law enforcement officers but to apply to and graduate from LETI to gain

Opinion of the Court

employment. Employment in the state’s law enforcement agencies serves as one of *the* key goals in our role play state

A

The first hurdle we must overcome is establishing that the right to pursue a common occupation is a “fundamental” right worthy of protection. In deciding whether a right falls into this category the Court has long asked whether the right is “objectively, deeply rooted in this Nation’s history and tradition, and implicit in the concept of ordered liberty, such that neither liberty nor justice would exist if they were sacrificed.” *Washington v. Glucksberg*, 521 U.S. 702, 720–21 (1997). *See also Dobbs v. Jackson Women’s Health Org.*, 142 S. Ct. 2228, 2242, 2246 (2022). If anything “the right to pursue callings and make contracts [i.e, the *right to pursue a common occupation*] . . . ha[s] better historical grounding than more recent claims of right that have found judicial favour.” James W. Ely Jr., “*To Pursue Any Lawful Trade or Avocation*”: *The Evolution of Unenumerated Economic Rights in the Nineteenth Century*, 8 U. Pa. J. Const. L. 917, 953 (2006).¹ For over a century before our Founding, English courts protected the right to pursue one’s occupation against arbitrary government restraint. *See, e.g.,* 1 William Blackstone, *Commentaries on the Laws of England* 415 (“At common law every man might use what trade he pleased.”); Sandefur, *supra*, at 18–23; Calabresi & Leibowitz, *supra*, at 989–1003.

However, it is not simply enough that the right has historical grounding in English courts before the Founding, the importation of these values and conversion of them into American legal principles is also an implicit prerequisite. This is again evident in the Massachusetts Body of Liberties of 1641 which contained an express prohibition on monopolies, stating that “[n]o monopolies shall be granted or allowed amongst us, but of such new Inventions that are profitable to the Countrie, and that for a short time.” *See also* Michael Conant, *Antimonopoly Tradition Under the Ninth and Fourteenth Amendment: Slaughter-House Cases Re-Examined*, 31 Emory L.J. 785, 797 (1982). And later, members of the Founding generation agreed on the fundamental importance of the right to pursue one’s occupation. Benjamin Franklin wrote that “[t]here cannot be a stronger natural right than that of a man’s making the best profit he can of the

¹ *See also, e.g.,* Timothy Sandefur, *The Right to Earn a Living: Economic Freedom and the Law* (2010); David E. Bernstein, *The Due Process Right to Pursue a Lawful Occupation: A Brighter Future Ahead?*, 126 Yale L.J. F. 287 (2016); Steven G. Calabresi & Larissa C. Leibowitz, *Monopolies and the Constitution: A History of Crony Capitalism*, 36 Harv. J.L. & Pub. Pol’y 983 (2013); Timothy Sandefur, *The Right to Earn a Living*, 6 Chap. L. Rev. 207 (2003)

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natural produce of his lands.” *Causes of the American Discontents before 1768, in Benjamin Franklin: Writings* 613 (Lemay ed., 1987). If this does not constitute a right that is “objectively, deeply rooted in this Nation’s history” I do not know what is. *Glucksberg. Id.*

The Seventh Circuit Court of Appeals have helpfully identified that being a “police officer” is an occupation—but being a “police lieutenant” is not. Indeed, attention should be given to the fact that the right to pursue a chosen occupation is not a right to receive a particular job, *Martin v. Haling*, 94 F.4th 667, 672 (7th Cir. 2024) (“To that end, we have explained that being a police officer is an occupation, but holding a specific position within law enforcement management—such as Chief of Police or police lieutenant—is a particular rank or job in the police force.”)

What vindicates this position is the language that was historically used to represent the right to pursue a common occupation similarly exists in our State Constitution’s Equal Opportunity Clause. Namely that “our own American constitutional liberty ... is the liberty ... to work an honest calling and contribute by your toil in some sort to the support of yourself, to the support of your fellowmen, and to be secure in the *enjoyment of the fruits* of your toil.” CONG. GLOBE, 42nd Cong., 1st Sess. App. 86 (1871) (statement of Rep. Bingham). This language mirrors the Equal Opportunity Clause’s guarantee of “the *enjoyment of the rewards of their own industry*”. The Equal Opportunity Clause finds its origins from the Alaska State Constitution which has long been recognized to “afford[...] greater protection to individual rights than the United States Constitution’s Fourteenth Amendment.” *Malabed v. North Slope Borough*, 70 P.3d 416, 420 (Alaska 2003). *See also Schafer v. Vest*, 680 P.2d 1169, 1172 (Alaska 1984). This level of greater protection no doubt gives rise to the right to pursue a common occupation being protected by the State Constitution. Therefore, whilst the District Court erred in the finding of a fundamental right in education, it can nonetheless be sustained on the grounds that a fundamental right to *pursue a common occupation* exists in the Equal Opportunity Clause. Consequently, because the right to pursue a common occupation is a “fundamental” right worthy of protection strict scrutiny must apply.²

² The right to pursue a common occupation is one which is not exclusively limited to law enforcement, despite the focus of such in this case. Other examples of occupations capable of pursuit under this right include lawyers, doctors, agricultural workers, entrepreneurs, civil servants, fishermen, farmers, lumberjacks and in some cases volunteer work. This is by no means an exhaustive list but one which demonstrates the breadth and depth of this right in practice.

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B

Strict scrutiny is proper when classifications “disadvantage a suspect class” or “impinge upon the exercise of a fundamental right.” *Plyler v. Doe*, 457 U.S. 202, 217 (1982). We have established that the measure impinges on the exercise of the fundamental right to pursue a common occupation enshrined in the Equal Opportunity Clause. The measure must now survive a daunting two-step examination known as “strict scrutiny,” *Adarand Constructors, Inc. v. Peña*, 515 U. S. 200, 227, which asks first whether the use of arrest records to conclusively reject citizens serves “further compelling governmental interests,” *Grutter v. Bollinger*, 539 U. S. 306, 326, and second whether the government’s use of the measure is “narrowly tailored,” to achieve that interest, *Fisher v. University of Tex.*, 570 U. S. 297, 311–312.

It is clear to me that a case can be made that the use of background checks serves a compelling interest in broadly protecting public safety. There is a state interest in preventing the corruption and criminalization of law enforcement training standards. The District Court recognized this interest, and rightly so. However, one cliché rebuff that can be delivered equally here is that preventing the rehabilitation of former criminals does *not* constitute a compelling state interest. That distinction is important for our second prong.

Namely ensuring that the measure represents the “least restrictive means” of achieving this compelling interest. *Doe v. Mills*, 142 S. Ct. 17, 20 (2021). A blanket prohibition of otherwise ‘eligible’ citizens based on the number of record(s) without any regard to mitigating circumstances, rehabilitation and the utilization of proportionality in each candidate’s situation is not narrowly tailored as to achieve the state interest in ensuring public safety and confidence in policing. Examples are given as to how this could be a more narrowly tailored policy. Because the measure’s breadth is akin to the use of a demolition crew rather than a measured chisel it cannot be accurately described as “narrowly tailored”.

C

We have long recognized “[t]he mere fact that a man has been arrested has very little, if any, probative value in showing that he has engaged in any misconduct.” *Schwabe v. Bd. of Bar Exam. of State of N.M.*, 353 U.S. 232, 241 (1957). Whilst this is due some contextualization as petitioner suggests, it should not be afforded such a level of deference as to equate an arrest as being evidentially equal to a conviction. In turn, because the policy does not account for any nuances it cannot possibly be argued that

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“no less restrictive alternative is available.” *University of California Regents v. Bakke*, 438 U.S. 265, 357 (1978). As stated before, examples of less restrictive alternative measures include considering: (1) the nature of the arrests; (2) the time frame in between the application and the arrests made; (3) the time period between all the arrests made; (4) whether the records were eligible for expungement and if so they ought to be treated as such; (5) whether the records are *substantial* in nature.

These measures should all be based on the principles of proportionality; a hard and fast rule or quota will simply not satisfy the Constitution’s protections. In fact, whilst due process is a separate legal principle it is intertwined and should be considered incorporated in cases where the Equal Opportunity Clause operates. To avoid due process concerns, LETI should ensure that individuals can submit written mitigation when arrest records are disclosed, and that these written representations are given appropriate weight as mitigating factors. An internal rule from the Institute is nonetheless necessary to demonstrate compliance with this ruling and good faith attempts at implementation must be demonstrated.

In conclusion, because the Institute’s policy regarding arrest records is not narrowly tailored it fails strict scrutiny and should be reformulated in accordance with the advice, both legal and practical, contained in this opinion. The District Court’s order is hereby,

AFFIRMED.

JUSTICES NOTABLE, STICKZA and TOTORO took no part in the decision or consideration of this case.

CASES ADJUDGED

IN THE

SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

No. 02-22

IN RE MIXEDREAPER

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[July 16, 2025]

PER CURIAM.

The petitioner was serving as prosecutor in a criminal cause when he exchanged private electronic messages with the accused after the plea of guilty had been accepted but before sentence had been pronounced. Defense counsel placed those messages before the trial judge, submitting that their tenor, with references to execution and the like, was offensive and threatening.

Acting *suo motu*, the judge opened a separate proceeding. The petitioner was afforded neither legal representation nor a reasonable opportunity to respond, and the court received no evidence apart from the messages themselves. Nevertheless, it summarily found him guilty of *indirect* contempt and permanently disqualified him from further prosecutorial office.

Even viewed generously, the ruling was ill-considered; it offends constitutional law and constitutes a manifest abuse of discretion. No extended reasoning is needed. The judgment must be, and is,

REVERSED.

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CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER
AT JANUARY TERM, 2025

No. 02-20

VINNIEMC2165 *v.* STATE OF MAYFLOWER

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[September 6, 2025]

KHALED, J., delivered the opinion of the unanimous Court.

The State of Mayflower brought this criminal action against the Respondent charging him with assault, murder, and brandishing of a firearm. The State’s sole witness authenticated a video exhibit in line with the Rules of Evidence, but the exhibit was not examined further by the prosecution. The trial judge then took it upon himself to conduct a direct examination of the witness, posing eight substantive questions that supplied essential elements of the prosecutions case. Respondent was ultimately convicted, and the trial court imposed additional penalties, which included a permanent prohibition on the possession of firearms and ammunition, alongside a fifty-day suspension from peace office status.

Petitioner appeals, arguing that the trial judge’s question violated his right to a fair trial before an impartial tribunal. We agree. The trial court erred in supplying the State’s missing proof, denying Respondent the constitutional promise of a fair and impartial tribunal. We also hold that the fifty-day peace-officer disqualification must be vacated because § 1601(d) speaks only to misconduct offenses defined in Title I. And, that permanent firearm prohibition, though within the court’s power to impose, cannot stand because its severity amounts to cruel and unusual punishment. Accordingly, the judgment is reversed in part and affirmed in part.

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A judge may ask a question; but he may not become the prosecutor. Our Mayflower Rules say nothing on the point in its Rules of Evidence; in that silence, practice permits the Federal Rules to speak instead. Rule 614(b) recognizes the court's authority to interrogate a witness, an authority as old as the trial itself and often useful. But it comes with a strict condition: the scales must stay even. *See Chainey v. Street*, 523 F. 3d 200, 221–22 (3d Cir. 2008) (Rule 614(b) allows judicial interrogation; review is for abuse of discretion). And the Supreme Court's reminder endures: the judge is “governor of the trial, not mere moderator.” *Quercia v. United States*, 289 U. S. 466, 469 (1933).

That constraint does not evaporate in a nonjury proceeding. The judge may inquire to understand; the judge may not advocate to prove. Federal courts put it simply: the power to question is bound by the duty of neutrality, clarify what is obscure; do not supply what is missing. *See United States v. Adedoyin*, 369 F. 3d 337, 342 (3d Cir. 2004) (“must not ... assume that of an advocate”); *United States v. Beaty*, 722 F. 2d 1090, 1095 (3d Cir. 1983) (clarification is not taking over the government's examination); *United States v. Wilensky*, 757 F. 2d 594, 597–98 (3d Cir. 1985) (extensive judicial questioning can overstep prudent bounds); *United States v. Ottaviano*, 738 F. 3d 586, 594–95 (3d Cir. 2013) (when questioning becomes cross-examination it is unlawful).

Due process sets a concrete guide that no one may be tried before a tribunal that, in substance, becomes a party. *See In re Murchison*, 349 U. S. 133, 136 (1955) (“no man can be a judge in his own case”). Persuasive authority from bench-trial jurisdictions reads the same. For example, Illinois gives judges “wider latitude” in bench trials, permitting questions to clarify, but warns against “assum[ing] the role of prosecutor” or going beyond the record. *People v. Johnson*, 327 Ill. App. 3d 203, 208–09, 762 N.E. 2d 615, 618–19 (1st Dist. 2001); *In re N.T.*, 31 N.E. 3d 254, 268–69 (Ill. App. Ct. 1st Dist. 2015).

Applied to this case, the State authenticated a video and fell silent. The court then announced its own direct and asked eight, element-bearing questions: who the defendant was, what he did, where and in what official posture. None of which the State had asked, creating load-bearing themes of guilt. In a bench trial that is worse, not better: the court constructed the missing case and then adjudged the weight of its own construction.

When the court furnished the States missing elements, and then relied on them to sentence the Defendant, it broke the constitutional promise that the Framers gave to us all a fair tribunal. *See* 6 LAFAVE ET AL.,

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CRIMINAL PROCEDURE § 22.4(a) (due process guarantees an impartial judge; the inquiry is an objective one into the risk of bias).

The amici argues that the trial judge’s intervention was harmless. It was not. When a judge abandons neutrality and assumes the role of a prosecutor, the error is structural, not subject to harmless error review. *See Tumey v. Ohio*, 273 U. S. 510, 535 (1927) (biased adjudicator violates due process regardless of outcome); *People v. Trefonas*, 9 Ill. 2d 92, 100, 136 N.E. 2d 817, 822 (1956) (“line of propriety is crossed when the judge fails to function as the trier of fact and assumes the role of prosecutor”). If the conviction depends on the judges’ questions, that isn’t harmless. That is the whole trial. We dismiss and remand his arguments.

II

This case turns on a few spare lines in Title Four. They create a swift, practical mechanism to revoke a firearms license and, alongside it, a judicial power to set how long that revocation lasts. Our task is to read the words, so they work together. “In ascertaining the plain meaning of the statute, the court must look to the particular statutory language at issue, as well as the language and design of the statute as a whole.” *K Mart Corp. v. Cartier, Inc.*, 486 U. S. 281, 291 (1988).

Starting with the text. Section 4902 places the initiation with the police: “a state-issued firearm license shall be revoked by law enforcement officers” when statutory triggers are met. That is the administrative engine, a ministerial act. Next, § 4903 fixes a default duration “shall be revoked for only 24 hours” and then adds the controlling phrase: “unless otherwise specified by a court order.” The words are plain. Courts “must presume that a legislature says in a statute what it means and means in a statute what it says.” *Conn. Nat’l Bank v. Germain*, 503 U. S. 249, 253–54 (1992). And when the language is plain, “the sole function of the courts is to enforce it according to its terms.” *Lamie v. U.S. Tr.*, 540 U. S. 526, 534 (2004) (cleaned up).

“Shall” is generally mandatory; it is not a suggestion. *Lexecon Inc. v. Milberg Weiss*, 523 U. S. 26, 35 (1998). Courts have long affirmed this, and we must not expand further. The carve-out “unless otherwise specified by a court order” is not a tickbox, it is an affirmative grant to set a different period, with no fixed ceiling. We do not waste words: “no clause, sentence, or word shall be superfluous, void, or insignificant.” *Duncan v. Walker*, 533 U. S. 167, 174 (2001). Read fairly, the parts fit thus: § 4902 names who executes revocation ministerially on behalf of the Sovereign; § 4903 assigns who sets its duration (the court, by order, beyond the 24-

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hour default); § 4904 instructs officers to log what has been done. Each provision has work to do; none is redundant.

Amici and petitioner reply that because no 24-hour police revocation appears in this record, the judge had nothing to “extend” and thus no power to act. We don’t agree. Section 4903 speaks in the passive voice “shall be revoked ... unless otherwise specified by a court order.” *Id.* The grammar does not smuggle in a condition precedent that the police must first “start the clock.” “A provision that may seem ambiguous in isolation is often clarified by the remainder of the statutory scheme,” and “only one of the permissible meanings produces a substantive effect that is compatible with the rest of the law.” *United Sav. Ass’n of Tex. v. Timbers of Inwood Forest Assocs., Ltd.*, 484 U. S. 365, 371 (1988). The sensible reading is this: officers revoke when the statute’s triggers fire and record the act, ministerially; the court may “otherwise specify” a longer (even indefinite) period by order where the record warrants it.

Their *expressio unius* argument fares no better. The canon is a guide, not a command, applied “with great caution, and only under certain conditions.” 2A SUTHERLAND STATUTES AND STATUTORY CONSTRUCTION § 47:25. It “generally has force only when the items expressed are members of an associated group or series,” it “does not apply to an entire code, but only to an individual statute,” and when a statute uses “include,” it is “generally improper” to infer exclusion of items not listed. *Id.* The maxim also does not apply “unless it is fair to suppose that the legislature considered the unnamed possibility and meant to say no to it.” *Id.*

The whole-act rule points the same way. We look not only at the phrase but at the statute’s structure and design. The Legislature expressly fixed a 24-hour default and right next to it expressly vested courts with authority to “otherwise specify.” The contrast confirms, rather than defeats, judicial power to set a longer period by order. Accordingly, Title Four authorizes law enforcement to revoke ministerially when the triggers are met and authorizes courts, by order, to set duration beyond the 24-hour default.

However, I pause to take up a point neither side has pressed but that matters to the outcome. Our Framers copied, almost word for word, the ban on “excess bail, excessive fines, [and] cruel and unusual punishments,” MAYFL. CONST. art. I, § 5, from the English Bill of Rights of 1689. As *Blackstone* said it, that protection was part of the settled liberties of the realm, rooted in what the law had long allowed, not in passing fashions. See 4 BLACKSTONE, COMMENTARIES ON THE LAWS OF ENGLAND (1769). Read in that light, “unusual” does not mean odd; it means out of

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step with long usage: what Stinneford calls a check on “cruel innovation.” See STINNEFORD, THE ORIGINAL MEANING OF “UNUSUAL”, 102 Nw. U. L. Rev. 1739, 1816–18 (2008).

Here the question is not whether Title Four permits a court to “otherwise specify” duration; it is whether this punishment, as imposed, crosses the Cruel & Unusual Punishments line. Our cases teach that punishment must be proportioned to the offense. *Weems v. United States*, 217 U. S. 349, 367 (1910) (“It is a precept of justice that punishment for crime should be graduated and proportioned to offense.”). The Clause is not frozen in 1689; it guards against punishments that offend the “evolving standards of decency that mark the progress of a maturing society.” *Trop v. Dulles*, 356 U. S. 86, 101 (1958) (plurality). At the same time, our non-capital jurisprudence recognizes a “narrow proportionality principle,” demanding that severe, permanent sanctions be justified by more than assertion, but I much prefer the *TrexoDev* proportionality test (commonly the Robloxism principle).

A permanent firearm prohibition appended to criminal judgment is no ordinary condition; it is a character-long disability. It means that nobody can be reformed, for example, to become a LETI certified officer, or called to the Bar. In function it resembles the most severe noncapital penalties, which “forswear altogether the rehabilitative ideal.” *Graham v. Florida*, 560 U. S. 48, 74 (2010). Nothing in this record explains why it is necessary to serve legitimate penal aims. Nor does the code’s comparative scale suggest that lesser crimes warrant a sanction more enduring than those assigned to graver ones. On this showing, the prohibition departs both from proportion and from tradition. It is, in the old phrase, cruel in kind as well as in degree.

We take guidance from our colleagues who would fit doctrine to this forum’s realities. JUSTICE CABOT warns that a straight import of federal tests, which the lower court judge may have relied on, can be “too rigid for a ... community like ours.” *State of Mayflower v. TrexoDev*, 2 Mayf. ____ (2025) (Cabot, J., dissenting). THE CHIEF JUSTICE sounds the same note, cautioning against “incessant credence to *Barker* ... absent any consideration as to whether it is reconcilable with our ... platform.” *Id.* (TURNTABLE, C.J., dissenting). And they would have us adopt a holistic method sensitive to “our platform and our roleplay mechanics” rather than a wooden checklist. *Id.* (CABOT, J., dissenting). We agree with that premise and apply it to sentencing. In this environment, sanctions must be closely tailored to our community calibrated to the kinds of offenses we see and the cadence of play. A blanket, lifelong firearms disability

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untethered to individualized findings would prove unworkable. Were “everyone charged with murder” – if the Justice Department had done their job correctly – automatically and permanently barred from possessing or receiving any firearm, the rule would effectively outstrip the activity of Clark County and disable large swaths of lawful play; that is not realistic and not proportionate to legitimate aims of the Criminal Code. We therefore require individualization, time limits, and reasons on the record.

On that record, we hold that permanent prohibition is not “tailored to the platform”. It is a sanction that never ends that is unproportionate to crime. The cardinal purpose of the game is to have the ownership of a gun.

III

The phrase “any degree of misconduct” is a term of art in this Code. Title 1 defines three graded offenses: misconduct, gross misconduct, and felony misconduct and only those. See 1 M.S.C. §§ 1302–1304. When a statute uses a term of art, courts presume it carries its established legal meaning. Read with the whole-act rule, § 1601(d)’s reference to “any degree of misconduct” points back to those defined offenses, not some common law interpretation. Appellant’s convictions, second-degree murder and assault with a deadly weapon are not “misconduct,” “gross misconduct,” or “felony misconduct” within 1 M.S.C. §§ 1302–1304, *supra*. If the government wants disqualification of a peace officer, it should put such on the charging document. Section 1601(d) therefore does not apply. The fifty-day disqualification is vacated.

REVERSED AND REMANDED.

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CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER
AT JANUARY TERM, 2025

No. 02-33

AEROLIFTS, ET AL. v. SADOIMPACTO

ON DIRECT APPLICATION TO THE SUPREME COURT OF MAYFLOWER
FOR INHERENT JURISDICTION REVIEW

[September 29, 2025]

CABOT, J., delivered the opinion of the unanimous Court.

Plaintiffs petition this Court on an emergency basis to handle the now largely repealed Attorney General’s directive which sought to revoke “any and all law enforcement authorities previously vested in or exercised by the individuals named” in his directive. See App 1a. We ordered counsel to brief the jurisdictional issue for us to review and dispose of on that basis. Now that the factual issues are largely resolved we deliver an opinion based solely on subject matter jurisdiction.

In turn, we find that the Court, acting under its grant of original jurisdiction, complimented by longstanding tradition in the English common law, possesses the inherent authority to review this challenge directly. Further analysis is given in relation to this inherent power, how it ought to be exercised and the implications of this power of review.

However, we dismiss the application solely on the basis that the factual dispute has been resolved by the Judicial Committee of the Privy Council. We do not dismiss the application on the basis that there is (or was) any jurisdictional deficiency. Accordingly, the issue of this court’s jurisdiction should be treated as good and binding law.

I.

Before continuing further, it is helpful to define what Inherent Jurisdiction Review is and means. Inherent Jurisdiction Review is the exercise

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of our inherent grant of jurisdiction contained in Art. X, § 2 of the Mayflower State Constitution *upon direct application* to the Court. It permits us to weigh in “[i]n all cases... in which the state shall be a party.” *Id.* It also vests us with a unique and positive mandate where “[the Supreme Court] shall be protectors of this Constitution.” *Id.* Therefore, the origin of this power is not even new or radical, it is a simple recognition and restatement of our existing constitutional apparatus. The basis for this type of review will be explored in-depth below along with the circumstances in which its exercise is fitting.

A.

Its origin, like most mandates this Court exercises, is the Constitution. It has long been recognized that “[...] original jurisdiction favors parties that want clear answers from the high court, and it disfavors those who prefer a more circuitous path to resolution or who prefer to shop among lower court judges.” Z.D. Clopton, ‘Power and Politics in Original Jurisdiction’, 91 U. Chi. L. R. 83, 90 (2024). In matters of public interest, where the constitutional and individual stakes are so high, it is only natural for this court to exercise its original grant of jurisdiction to prevent tactics like judge-shopping which malign the lower courts. As delays are becoming more frequent across the judiciary, summary dispositions of these matters through the shadow docket may become more commonplace and even at times desired. See generally, S. Vladeck, *The Shadow Docket: How the Supreme Court Uses Stealth Rulings to Amass Power and Undermine the Republic* (2023). Such a speedy administration of justice can only come from the canals of this Court.

The State Constitution also demands that we *shall* be the protectors of the Constitution. That uniquely provides this Court with a positive obligation and mandate to not just *defend* the Constitution— but to *protect* it. That calls for the Court to, proactively rather than defensively, “say what the law is” in no uncertain terms. *Marbury v. Madison*, 5 U.S. 137 (1803). This more liberal construction of the grant of original jurisdiction is not just by linguistic implication but is also implied by the Constitution’s grant of power to the Supreme Court with advisory opinions. *Mf. Const.*, Art. X, § 9. A proposal to include an advisory opinion mechanism in the Union Constitution was defeated at the Constitutional Convention and the Union Supreme Court also rejects the existence of such at a federal level. *See e.g., Hayburn’s Case*, 2 U.S. 409, 410 (1792); *Muskrat v. United States*, 219 U.S. 346, 361–63 (1911).

The point made here is that any comparison made to the Union Supreme Court’s *lack* of such powers does not negate the existence of our

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more unique and extensive inherent powers. The fact that the grant of original jurisdiction is made as preamble before an explicit grant of appellate jurisdiction in the State Constitution reaffirms the existence of this inherent power. Such a structural mandate uniquely reaffirms this Court's decision to bring Inherent Jurisdiction Review to the forefront of judicial review through matters that involve public interest. Its existence is undeniable and is in tune with the spirit of accountability that binds the fabric of this Union.

B.

Now that our inherent jurisdiction ostensibly exists, the opinion will now explore its purpose and the test to surpass when filing an application for Inherent Jurisdiction Review. The purpose of Inherent Jurisdiction Review is to primarily allow for the challenge (preemptive or not) of an act of either the Legislature or the Executive to this Court for direct review.

The standing of individuals bringing a challenge for direct review is a non sequitur so long as the challenge is specific, brought in good faith and is litigated in an equitable timeframe to the threat of the alleged action. State courts have long recognized, either through their Constitutions or statutes, that individuals may litigate in public interest, in stark comparison to the federal law of standing. *See e.g., Hollingsworth v. Perry*, 133 S. Ct. 2652, 2662-67 (2013). The core proposition is that every citizen suffers an injury when public officials fail to uphold the state constitution or fail to properly fulfill a public duty, and these failures allow any individual to have standing in court. Because the Arkansas State Constitution has largely inspired the spirit and nature of protections our citizens possess, we give large weight to it today.

Simply put “[w]hen... the proceedings are for the enforcement of a duty affecting not a private right, but a public one, common to the whole community, it is not necessary that the relator should have a special interest in the matter...” *Wells v. Purcell*, 592 S.W.2d 100, 103 (Ark. 1979). This relaxation of standing when exercising review under our original jurisdiction comes from the judiciary's final say over the constellation of requirements encompassed by justiciability. As a judicially made doctrine, justiciability is malleable and today it bends for good cause. *See* Louis L. Jaffe, ‘Standing to Secure Judicial Review: Public Actions’, 74 Harv. L. Rev. 1265, 1296 (1961).

C.

Opinion of the Court

The first hurdle that any petitioner must overcome when making an application for Inherent Jurisdiction Review is public interest. The Court will ask itself the question: Does the application involve an act of the executive or legislature that adjacently impacts constitutional doctrine? Public interest has its roots in [English] ‘Crown Privilege’ where the Crown was expected to act in the interests of its people through stances in litigation. *Conway v. Rimmer* [1968] AC 910. That has now moved on, but the issue of public interest is deeply embedded as a doctrine throughout our shared common law. Its transposal here as a preliminary hurdle is necessary to prevent our use of original jurisdiction becoming a tool for resolving petty disputes. Petty disputes include criminal prosecutions, ordinary civil claims and expungements. Essentially, only matters of *constitutional magnitude* will qualify for review.

An indication that a matter is one of constitutional magnitude and thus passes this hurdle is that it encompasses concerns over: checks and balances, separation of powers, natural justice, constitutional rights and the basic structure of the Constitution. Other preliminary factors that will decide whether this first hurdle has been overcome include: (1) whether the matter would likely be appealed and the Court would grant review on the merits in the future anyway, and (2) if the harm incurred by petitioner could be described as “devastating and immeasurable” if the lower court process were allowed to play out. This is a facts-based and facts-sensitive analysis that will depend on the underlying context contained in each case.

D.

Assuming the first hurdle is met, for the case to succeed and a writ to be issued by the Court the second hurdle must be met. The question asked by the Court in considering whether the second hurdle is met is: Is the measure constitutionally justifiable?

In answering this question, the Court must be persuaded that the measure is so irrational or unreasonable that no legislator or executive officer would engage in such an act if they had true fidelity to the basic structure, power and contents of the Constitution.

Examples of acts that would be found to be constitutionally unjustifiable include: the Senate abolishing the judicial contempt power or making its exercise dependent on another branch; the Governor dissolving the Senate permanently or to extend his or her own term of office beyond the constitutional limit; the Legislature abolishing the right to vote in general elections or restricting the franchise to an arbitrarily narrow class;

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the Senate stripping the courts of their core power of judicial review or making the enforcement of judgments subject to executive approval; the Executive claiming the power to detain citizens indefinitely without trial; the Legislature abolishing constitutional rights such as freedom of expression without observing the amendment procedures; or the Senate purporting to abolish the Constitution itself without convening the prescribed amendment process.

In determining whether an exercise is unreasonable or irrational we will look to a range of factors including: the historical exercise of such powers, the customs and practices surrounding such powers, our own case law and the contemporary standards expected of the executive and legislative departments. *Cf.* Robert W. Gordon, *Taming the Past: Essays on Law in History and History in Law* (2017) (“[T]he historicized past poses a perpetual threat to the legal rationalizations of the present.”) Therefore, if a measure is found to be constitutionally unjustifiable the Court need not strike it down, for it is a nullity from its immediate conception. The Court will simply issue a writ to recognize the action’s status as a nullity to vindicate the rights of the parties involved and the wider public interest.

II.

In turn, because the measure before us in this case is resolved on the factual issues, we see no issue to analyse the matter any further. The opinion of the Court remains good, binding and precedential law. For the reasons made previously the petition is hereby,

DISMISSED.

CASES ADJUDGED

IN THE

SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

No. 02-40

IN RE JAMESGARDAI

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[November 7, 2025]

CABOT, J., delivered the opinion of the unanimous Court.

I.

Appellant, Chief Public Defender of Mayflower, was appointed to represent an individual charged with three misdemeanours and one felony.

On September 22, 2025, the lower court reminded counsel that discovery and pretrial motions were due by September 27, 2025. The State’s counsel acknowledged forgetting, and the judge jokingly credited appellant with requesting an extension. When appellant denied doing so and pointed out prior delays, the judge accused appellant of editing chamber messages and issued a final warning to maintain decorum. The alleged edited message was a typographical correction made four days earlier. Appellant responded by posting a definition of “deflection,” after which the judge issued an oral order finding appellant in contempt.

A.

The judiciary must be seen to be a legitimate institution, without its legitimacy, like all public bodies, it ceases to possess an authority to act. Because appellant chose to disrespect the lower court’s authority instead of properly appealing its ruling, he now finds himself in this predicament. He disrespected the court as an institution and as a legitimate source of authority and thereby obstructed the administration of justice.

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The lower court’s action therefore does not constitute an abuse of discretion because it is not an unreasonable exercise of its powers. *See State of Mayflower v. Tacos*, 2 Mayf. ____ (2025) (slip op., at 2) (“Review on the grounds of reasonableness requires that the trial judge must have acted so illogically and arbitrarily that no reasonable judge could have come to the same conclusion.”). Unless a contempt citation penalises a de minimis act, it will almost never be reviewable for abuse of discretion. *See, e.g., In Re Khaled*, 2 Mayf. ____ (2025) (per curiam).

B.

Appellant creatively argues that the imposition of a three-page, single-spaced, 12-point-font apology to the judge constitutes a “cruel and unusual punishment.” This is not a cruel and unusual punishment, but it is an abuse of discretion. First, all decisions rendered by judges must be “tailored to the platform.” *Vinnie v. State of Mayflower*, 2 Mayf. ____ (2025). *See generally, State of Mayflower v. Trexeo*, 2 Mayf. ____ (2025) (CABOT, J. dissenting, joined by TURNTABLE, C.J.). The requirement that this be completed within 24 hours of the imposition of contempt, on pain of further sanctions, is wholly unreasonable. Second, contempt is a measure of last resort. It is a punitive measure meant to reinforce the authority of the court as an institution, not mend hurt feelings. Apologies are not an appropriate remedy or punishment for contempt, they may be used as an incentive to avoid contempt, but they will never be appropriate as a remedy *for* contempt.

II

In conclusion, the mandatory imposition of an apology as a remedy for contempt constitutes an abuse of discretion, as its timeframe was neither tailored to the platform nor consistent with the primary purpose of contempt as a tool of last resort. Therefore, the decision of the lower court is,

AFFIRMED IN PART AND REVERSED IN PART.

Opinion of the Court

CASES ADJUDGED

IN THE

SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

 No. 02-32

THE PEOPLE OF CLARK COUNTY v. APCC2011

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[November 17, 2025]

CABOT, J., delivered the opinion of the unanimous Court.

The District Court of Clark County dismissed a criminal information brought by the District Attorney of Clark County on the grounds that the District Attorney lacked the requisite constitutional authority to prosecute criminal offenses. Petitioner now appeals to this Court, seeking clarification as to whether the District Attorney retains any power to prosecute criminal offenses, and if so, the scope of that authority.

Our State Constitution requires that the Legislature “ensure an appropriate division of the power to prosecute offences [between the District Attorney and Attorney General].” Mf. Const. Art. VI, § 3. This phrasing clearly presupposes the pre-existence of prosecutorial authority in more than one constitutional actor. The question is simply where does each prosecutor’s authority to prosecute *begin* and *end*?

I.

Constitutions often acknowledge existing jurisdictional arrangements and assign the political branches the task of structuring them without disturbing the underlying constitutional equilibrium. The District Attorney’s authority to prosecute therefore does not spring from statute. It is inherent in the office and grounded in the same historical and structural foundations that animate our interpretation of other constitutional grants of power. *See, e.g., Aerolifts, et al. v. Sadoimpacto*, 2 Mayf. ____ (2025).

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English common law provides the starting point. Before the emergence of a modern public-prosecutor model, criminal enforcement was pluralistic, not monolithic. Ordinary crimes were prosecuted by local constables, borough officials and in some instances, private individuals. See Philip B. Kurland & D. W. M. Waters, *Public Prosecutions in England, 1854-79: An Essay in English Legislative History*, 1959 Duke L.J. 493 (1959); John H. Langbein, *The Origins of Public Prosecution at Common Law*, 17 Am. J. Legal Hist. 313 (1973). The Attorney General intervened only where the interests of the Crown were uniquely implicated. For example, in cases of treason, sedition, offences touching the royal prerogative and cases of supralocal magnitude. As Langbein has shown, the “public prosecution” system never displaced the premise that local officials retained general prosecutorial authority absent express statutory reallocation. This is the historical backdrop that the Founding generation imported into the Columbian state systems.

A.

In the early Republic, state attorneys general were often parttime (sometimes even non-existent) and almost never endowed with exclusive criminal jurisdiction. Instead, county solicitors, district attorneys and commonwealth attorneys prosecuted all crimes within their territories unless the legislature carved out categories requiring statewide uniformity or coordination. Just as Congress cannot by fiat convert all intra-state conduct into interstate commerce and thereby extinguish the states’ core authority, a state legislature cannot, by delegation or inaction, eliminate the county’s historic authority to prosecute ordinary crimes. Especially historical authorities which ordinarily invoke local police powers. See *Noble State Bank v. Haskell*, 219 U. S. 104-111.

B.

This dual-sovereign model is embedded in the structure of the Mayflower Constitution. The District Attorney is not created as an arm of the Attorney General, nor is there any textual suggestion that the District Attorney depends on legislative grace for the existence of prosecutorial power. Rather, the District Attorney is a constitutional officer whose authority must be understood as concurrent with that of the State. The Legislature’s task under the Constitution is to “ensure” a sensible allocation of power between two existing sovereigns, not to abolish one sovereign through omission. See *Clark County v. Senate of the State of Mayflower*, No. CV-379-25 (Clark Cnty. Dist. Ct. Aug. 22, 2025) (Gobies, J.). As *Aerolifts* makes clear, measures that so radically distort the Constitution’s

Opinion of the Court

basic structure as to annihilate a constitutional office's essential function are not merely unwise—they are void from conception.

C.

The Attorney General's directive, which authorizes the District Attorney to *only* prosecute offences that never occur, is the functional equivalent of extinguishing the office. The Attorney General's directive further fails under the principle articulated in *Aerolifts* that constitutional measures must be "rational and reasonable" in light of the basic structure of the Constitution. A directive that eviscerates a constitutional officer's core function is incompatible with the Constitution regardless of the Legislature's acquiescence. The proper remedy is simply to recognise that nothing valid was ever enacted and the constitutional default therefore remains undisturbed.

That default, drawn from the common law, the founding practice and the dual-sovereign structure implicit in the Constitution, is therefore that the District Attorney holds general, residual prosecutorial authority over all offences occurring within the county, save for those narrow categories that historically or constitutionally belong exclusively to the State. Such categories include crimes that are inherently supra-local. For example, terrorism, statewide organised criminal enterprises (unless they take place in their respective county), crimes implicating statewide infrastructure and offences traditionally reserved to the Sovereign such as treason. Outside these limited classes, the District Attorney's jurisdiction is concurrent and constitutionally entrenched.

II.

As the Legislature failed to enact a constitutional division of prosecutorial authority and because the Attorney General's directive purporting to limit the District Attorney's remit is constitutionally void, the District Attorney remains constitutionally empowered to prosecute any and all offences within the county's competence.

Where the Legislature acts in a manner that is unfaithful to the Constitution and its basic structure, we will presume that that the same infidelity will persist *ad infinitum*. Therefore, the Court will not hesitate to remedy such infidelity with a scheme that seeks to restore the constitutional equilibrium.

In conclusion, the lower court was wrong to dismiss the complaint on the grounds that the District Attorney lacked the requisite authority to

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prosecute. The decision is therefore,

REVERSED.

NOMADITY, J., took no part in the consideration or decision of this matter.

Opinion of the Court

CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

No. 02-33

CHARLESLXV v. ORANGEBEAR22, ET AL.

ON DIRECT APPLICATION TO THE SUPREME COURT OF MAYFLOWER
FOR INHERENT JURISDICTION REVIEW

[November 17, 2025]

CABOT, J., delivered the opinion of the unanimous Court.

On August 30, 2025, following the collapse of Clark County’s dubiously legal local government, the Governor attempted to unilaterally appoint members to the county board and the office of District Attorney without Senate confirmation. Notwithstanding the constitutional requirement that only the Lieutenant Governor can certify a defunct government and call an election within seven days. Something which did not occur.

Despite the defunct county board, the Governor’s appointees and the new District Attorney began serving absent legal confirmation while petitioner challenged the validity of these appointments.

I.

This Court’s review, guided by our inherent jurisdiction as outlined in *Aerolifts, et al. v. Sadoimacto*, 2 Mayf. ____ (2025), is reserved for moments when the constitutional fabric and institutional boundaries of government are at risk. Here, the Governor’s unilateral appointment of a District Attorney and the attempted resurrection of the county board after Clark County’s government became defunct on August 30, 2025, presents a textbook exercise of executive overreach.

Under our Constitution, the Executive’s powers are not unbridled. The text confines succession in local government, requiring the

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Lieutenant Governor to certify the vacancy and call for new elections, not executive appointment. When the Legislature or Constitution has spoken, there is no room for implied executive authority. As cautioned in *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579 (1952), executive power “must stem either from an act of Congress or from the Constitution itself”. However, the acts concerned here fall within the third category of *Youngstown*, where the executive acts against clear contrary legislative or constitutional guidance. *Aerolifts* explains that this Court has both the *power* and the *duty* to police the basic structure of government, intervening only when the public interest is implicated and the measure at issue is constitutionally unjustifiable. The measures here surpass both hurdles.

II.

Accordingly, the Court declares the Governor’s appointments *ultra vires*. Succession conventions within the District Attorney’s office must be respected until a valid election may be held, and the county’s only lawful offices are those preserved by the Constitution: District Attorney and Sheriff. Any other appointments, especially those bypassing constitutional procedure, are void *ab initio*. Therefore, the petition for a writ of inherent jurisdiction review is hereby,

GRANTED.

CASES ADJUDGED

IN THE

SUPREME COURT OF MAYFLOWER

AT JANUARY TERM, 2025

No. 02-55

IN RE SADOIMPACTO

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[December 7, 2025]

PER CURIAM.

The Constitution could not be clearer in this case: licensing and discipline belong to the State Bar under Article X, section VIII, and the Attorney General, by Article VI, section I, holds his Bar membership automatically. Only the State Bar and this Court may touch it. A District Court may keep order in its own house and punish disobedience by contempt, or by order of disqualification; but it may not bar a man from every courtroom in the State. We therefore lift any restriction on his right to appear, while leaving the contempt finding undisturbed.

REVERSED.

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CASES ADJUDGED
IN THE
SUPREME COURT OF MAYFLOWER
AT JANUARY TERM, 2025

No. 02-39

STATE OF MAYFLOWER *v.* EXTRASAMM, ET AL.

ON WRIT OF CERTIORARI TO THE DISTRICT COURT OF MAYFLOWER
FOR THE DISTRICT OF CLARK COUNTY

[December 19, 2025]

STICKZA, J., delivered the opinion of the unanimous Court.

Two months ago, the lower court was presented with one of the most despicable cases of our time. Last summer, respondents ExtraSamm and Wequiouu orchestrated a mass shooting on a group of law enforcement offers at the Meresa Police Department. This senseless ambush led to the death and injury of numerous officers, even striking – and critically injuring– inmates in the detention center. As defined by state law, this attack qualifies as a capital offense, and the state accordingly seeks the death penalty.

We have revised the question presented to question the constitutionality of the death penalty, but there is no reason to examine this at length, largely because state law is clear as to the proper procedure for capital punishment. Though the lower court did exclude capital punishment, questioning the constitutionality of this decision was both premature and unnecessary. Because of this, we have appropriately examined the statutory scheme, avoiding unnecessary probe of our state constitution and its meaning.

While state law requires a panel of jurors to impose the death penalty, the lower court got swept up in its own tracks and prematurely excluded capital punishment before a jury was even summoned. That decision is antithetical to state law, and because it forces discretion in an obligatory procedure, the lower court erred in its order. As a result of our statutory

Opinion of the Court

analysis, the lower court is wrong, and we accordingly reverse its decision.

I.

With any increase in urban population, the percentage of violent crimes increases too. Politicians and economists have long worked to control the surge of crime rates, because when cities present visible signs of disorder, the issue seems to only worsen. For years, Clark County has struggled with murder, assault, and gun crimes. And, like most urban areas, it has tried to control crime. One such measure has been the increase in its police force, but this measure is hardly effective. Another attempt to stem the flow of aggravated crimes is harsher punishments. The latter option is statistically most effective, because it deters wrongdoers, locks up criminals, and imposes real and hefty consequences for prospective offenders. The death penalty is a quintessential example of proper regulation. With a large police force, the threat of being arrested and tried for a capital punishment is high. This falls squarely into the deterrence theory, which states that criminals will weigh the cost and benefits of their crime. But because the death penalty is severe in nature, the cost outweighs the benefits of a crime, and as a result, most criminals will not become repeat offenders. This proven method of regulation leads to lower crime rates and safer and more prosperous community. Therefore, Clark County *needs* capital punishment to positively develop, and any attempt to strip it from the law book will only worsen the conditions in our tight-knit community.

II.

Although capital punishment is an effective measure for controlling crime – which is an important state interest – it is not easy to attain. Under state law, the lower court cannot impose the death penalty without “the unanimous recommendation by a capital jury *empaneled for that purpose*” 5 M.S.C. 1 § 4501. This extra layer provides security for defendants and ensures due process. Further, it removes potential bias from the bench and vests discretion with the defendant’s constituents. The death penalty, however, is not optional for the crimes charged; it is a command. After all, the legislature mandates that the listed crimes “shall be punishable by death” *Id.* at § 4202. That precise language leaves no room for judicial discretion. See *Lexecon Inc. v. Milberg Weiss Bershad Hynes & Lerach*, 523 U.S. 26, 35 (1998) (“[T]he mandatory ‘shall’ ... normally creates an obligation impervious to judicial discretion”). We have no more authority to exclude the death penalty than the lower court.

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Even though capital punishment is a required option for judgment, that does not mean that it *must* be imposed. That is where the jury comes in, which brings us to the present case. If a jury does not believe that someone deserves the death penalty, then a unanimous vote will reflect. But in this case, the lower court never even gave them the option – the judge threw the death penalty out the door and left no room in the proceedings for the statute to take effect. We all know that it is the duty of the courts “to say what the law is,” but it has never been our job to make the law. *See Marbury v. Madison*, 5 U.S. 137, 177 (1803). Yet that is precisely what the lower court did here. The most important canon of statutory interpretation requires us to “presume that [the] legislature says in a statute what it means and means in a statute what it says there” *Connecticut Nat. Bank v. Germain*, 503 U. S. 249, 253-254 (1992). Thus, our inquiry begins and ends with the statutory text, not our own personal desires.

III

Because the lower court denied capital punishment without the recommendation of a jury, and because state law *requires* the death penalty for the crimes alleged, the lower court erred in its judgment. That decision is reversed, and this case is remanded to the lower court to coordinate the empaneling of a capital jury.

REVERSED AND REMANDED

REPORTER'S NOTE

The following pages contain the orders of the Supreme Court from January 13, 2025 through December 20, 2025. The orders are for sale in original, paper form at 6492A King George Plantation Ln., Medford, MF 19025 in Offices:

Mayflower Independent Reporter // Lex™ // Meadows Reporter

January 13, 2025

In The
Supreme Court of Mayflower

ORDER LIST: MONDAY, JANUARY 13, 2025

01-10 IN RE SHAH_KHALED

The petition for a writ of mandamus is *denied*.

02-01 IN RE RIDGEVILLEBORN

The petition for a writ of mandamus is *denied*.

In The
Supreme Court of Mayflower

ORDER LIST: THURSDAY, FEBRUARY 13, 2025

01-11 LETI V. RRP_SAM10, ET AL.

Oral arguments are scheduled asynchronously to begin February 15th, at 00:00AM.

01-17 IN RE ACERXTRO

The recommendation to sanction Hon. Acerxtro, District Judge of Clark County, is *denied*, and the complaint is *dismissed* in its entirety.

02-02 IN RE SPILLIGON

Probable jurisdiction is *noted*.

Petitioners and Respondents are allowed until 02/23/2025 to submit Rule 12 and 13 briefs. Further extensions are at the discretion of the Clerk.

02-03 IN RE LENNYXVII

Probable jurisdiction is *noted*.

Petitioners and Respondents are allowed until 02/23/2025 to submit Rule 12 and 13 briefs. Further extensions are at the discretion of the Clerk.

02-04 IN RE CHUABLELOVERR

Probable jurisdiction is *noted*.

Petitioners and Respondents are allowed until 02/23/2025 to submit Rule 12 and 13 briefs. Further extensions are at the discretion of the Clerk.

IN RE CHUABLELOVERR, LENNYXVII, SPILLIGON

The motion to consolidate is *granted*.

February 13, 2025

In re Spilligon, 02-02, In re Lennyxvii, 02-03, and
In re Chuableloverr, 02-04, are consolidated by the Court
suo motu on motion by STICKZA, J.

IN RE MOTION TO PROMULGATE RULES

Pursuant to the provisions of the Public Servants
Act, 4 M.S.C. 7 § 3402(d), the Court approves and prom-
ulgates the Rules of Administrative Court procedure,
which shall take effect on February 14th.

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In The
Supreme Court of Mayflower

ORDER LIST: THURSDAY, FEBRUARY 27, 2025

02-07 IN RE BRENDAPOPPLEWELL

The petition for a writ of prohibition is *denied*.

March 13, 2025

In The
Supreme Court of Mayflower

ORDER LIST: THURSDAY, MARCH 13, 2025

02-09 ONTAGO23 V. MAYFLOWER

The petition for a writ of certiorari is *denied*.

IN RE APPROVAL OF SENATE RESOLUTION 30

The constitutional amendment garnered majority approval of the Court.

IN RE APPROVAL OF SENATE RESOLUTION 31

The constitutional amendment garnered majority approval of the Court.

In The Supreme Court of Mayflower

ORDER LIST: THURSDAY, MARCH 20, 2025

02-10 TACTICAL_PANCAKES V. SADOIMPACTO

The application for injunctive relief presented to Justice NOTABLE and by him referred to the Court is *denied*.

IN RE VACANCY OF COURT MARSHAL

The Court announces the appointment of MaskedImperial as Marshal of the Supreme Court of Mayflower.

IN RE VACANCY OF PRESS CORRESPONDENT

The Court announces the appointment of Stanley Labson as Press Correspondent of the Supreme Court of Mayflower.

IN RE TORTFEASOR_RULLES456

The *suo motu* recommendation to sanction Hon. tortfeasor_rulles456, Magistrate Judge of Clark County, is *denied* and the complaint is *dismissed* in its entirety.

IN RE TACTICAL_PANCAKES

The Court disposes of the matter by ordering the dismissal of Tactical_Pancakes, from his position as Chief Public Defender, effectively immediately.

March 29, 2025

In The
Supreme Court of Mayflower

ORDER LIST: SATURDAY, MARCH 29, 2025

02-02 IN RE SPILLIGON

The appeal is *dismissed* for failure to prosecute.

02-03 IN RE LENNYXVII

The appeal is *dismissed* for failure to prosecute.

02-04 IN RE CHUABLELOVERR

The appeal is *dismissed* for failure to prosecute.

02-12 3PEDALS V. MAYFLOWER

The appeal is *dismissed* for failure to prosecute.

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In The
Supreme Court of Mayflower

ORDER LIST: THURSDAY, APRIL 3, 2025

01-18 EX PARTE SINISTERINFERNAL

Petitioners are *ordered* to show cause, in writing, no later than 04/10/2025, as to why this case should not be dismissed for failure to prosecute. *See* Rule 26.1.

02-03 MARINESINACTION13 V. MAYFLOWER

The petition for writ of certiorari is *denied*.

May 13, 2025

In The
Supreme Court of Mayflower

ORDER LIST: TUESDAY, MAY 13, 2025

IN RE SENATE RESOLUTION 50

Pursuant to Art XIV, Sec 1 of the Constitution, the Court approves the proposed amendment to Art IV, Sec 1, and refers it to the Elections Commission for ratification by referendum.

IN RE AMENDMENT MAYFL. R. CIM. P. 2

Pursuant to Art X, Sec 6 of the Constitution, the Court approves and promulgates the amendment to Rule Two of the Mayflower Rules of Criminal Procedure, which shall take effect on May 14th.

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In The
Supreme Court of Mayflower

ORDER LIST: TUESDAY, MAY 24, 2025

02-17 IN RE FLIPLY27

Application for a stay presented to Justice Note-
ableants and by him referred to the Court is *denied*.

02-16 JUSTTHEJUDGE1 V. STATE BAR

The petition for a writ of certiorari is *denied*.

May 28, 2025

In The
Supreme Court of Mayflower

ORDER LIST: TUESDAY, MAY 28, 2025

02-17 IN RE FLIPLY27

Appellant has docketed this appeal pursuant to Rule 9.4, which applies only to criminal defendants. Yet, as is evident from the lower court record, whether any criminal charge was ever brought against him is disputed. Appellant is allowed until 06/01/2025 to submit a supplemental brief on jurisdiction addressing this issue.

In The
Supreme Court of Mayflower

ORDER LIST: FRIDAY, JUNE 6, 2025

02-19 IN RE ISANZW

Application for a stay presented to Justice Noteableants is *granted*.

01-11 STATE OF MAYFLOWER EX REL. LAW ENFORCEMENT TRAINING INSTITUTE V. RRP_SAM10

Application for an administrative stay on the Injunction presented to Justice Noteableants and by him referred to the Court is *denied*.

June 10, 2025

In The
Supreme Court of Mayflower

ORDER LIST: TUESDAY, JUNE 10, 2025

02-02 IN RE FLIPLY27

The petition for a writ of certiorari was withdrawn.

02-19 IN RE ISANZW

The stay is vacated, and the petition is *dismissed* as moot.

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In The
Supreme Court of Mayflower

ORDER LIST: TUESDAY, JUNE 18, 2025

02-20 VINNIEMC2165 V. STATE OF MAYFLOWER

Probable jurisdiction is *noted*.

Petitioners and Respondents are allowed until
28/06/2025 to submit Rule 12 and Rule 13 briefs. Further
extensions are at the discretion of the Clerk.

June 19, 2025

In The
Supreme Court of Mayflower

ORDER LIST: THURSDAY, JUNE 19, 2025

02-20 VINNIEMC2165 V. STATE OF MAYFLOWER¹

Probable jurisdiction is *noted*.

Further consideration is limited to the following questions: (1) Did the trial court act as an advocate and violate the defendant's right to a fair and impartial trial by extensively questioning a witness of the prosecution in a manner which filled evidentiary gaps in the prosecution's presentation?; (5) Did the trial court err in imposing a permanent prohibition on the possession, shipment, transport, and receipt of firearms and ammunition on the defendant?; (6) Did the trial court err in imposing 50 days of disqualification from peace officer status on the defendant?

Petitioners and Respondents are allowed until 28/06/2025 to submit Rule 12 and Rule 13 briefs. Further extensions are at the discretion of the Prothonotary.

¹ Amended entry. Replaces prior order of June 18, 2025.

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In The
Supreme Court of Mayflower

ORDER LIST: SUNDAY, JULY 6, 2025

02-21 IN RE ACESTRIOUS

Probable jurisdiction is *noted*.

Petitioners and Respondents are allowed until 16/06/2025 to submit Rule 12 and Rule 13 briefs. Further extensions are at the discretion of the Clerk.

ADMINISTRATIVE ORDER

The Chief Justice has assigned Hon. Justice Krabzonin PC OM to serve as the Applications Justice for the Mayflower District Court for Clark County.

ADMINISTRATIVE ORDER

The Chief Justice has assigned Hon. Justice AlexJCabot PC to serve as the Supervising Justice for the Mayflower State Bar.

ADMINISTRATIVE ORDER

The Chief Justice has assigned Hon. Justice shah_khaled PC to serve as the Supervising Justice for the Office of Public Defenders

August 4, 2025

In The
Supreme Court of Mayflower

ORDER LIST: MONDAY, AUGUST 4, 2025

IN RE APPROVAL OF SENATE RESOLUTION 91

The constitutional amendment failed to receive majority approval of the Court.

IN RE APPROVAL OF SENATE RESOLUTION 87

The constitutional amendment garnered majority approval of the Court.

IN RE APPROVAL OF SENATE RESOLUTION 88

The constitutional amendment garnered majority approval of the Court.

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In The
Supreme Court of Mayflower

ORDER LIST: TUESDAY, AUGUST 5, 2025

02-25 IN RE ADVISORY OPINION PERTAINING TO SEN-
ATE RESOLUTION 082

The Court will not be rendering advisory judgment
on this matter.

August 11, 2025

In The
Supreme Court of Mayflower

ORDER LIST: MONDAY, AUGUST 11, 2025

MOTION TO AMEND RULES OF IMPEACHMENT
PROCEDURE

The motion proposed by JUSTICE KRABZ is
hereby granted.

MOTION TO APPOINT THE CLERK OF THE SU-
PREME COURT

The motion proposed by JUSTICE KRABZ is
hereby granted. Sofiee is appointed to serve as Clerk of
the Supreme Court of Mayflower, effective immediately.

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In The
Supreme Court of Mayflower

ORDER LIST: WEDNESDAY, AUGUST 13, 2025

MOTION TO AMEND RULES OF IMPEACHMENT
PROCEDURE

The motion proposed by JUSTICE KRABZ is
hereby granted.

August 14, 2025

In The
Supreme Court of Mayflower

ORDER LIST: THURSDAY, AUGUST 14, 2025

02-29 IN RE IMPEACHMENT OF ISPILLEDMYTACOS

Respondent is permitted until August 17, 2025, at 11:59 PM EST to submit their official answer under Rule III(10)(1) alongside a list of their counsel. Further extensions shall be at the discretion of the Clerk of the Court.

02-30 IN RE IMPEACHMENT OF BOB181711NEW

Respondent is permitted until August 17, 2025, at 11:59 PM EST to submit their official answer under Rule III(10)(1) alongside a list of their counsel. Further extensions shall be at the discretion of the Clerk of the Court.

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In The
Supreme Court of Mayflower

ORDER LIST: WEDNESDAY, AUGUST 27, 2025

02-31 BOB78711NEW V. ORANGEBEAR22

The petition for extraordinary relief is *denied*.

August 29, 2025

In The
Supreme Court of Mayflower

ORDER LIST: FRIDAY, AUGUST 29, 2025

02-28 IN RE S. RES. 97

The Constitutional Amendment failed to garner majority approval of the court and so failed.

02-26 ALBERTWELLESLEY V. DISTRICT COURT

The petition for the writ of certiorari is summarily granted. The judgment is vacated.

02-31 IN RE JUDGE HOLYROMANRYAN

Upon consideration of the complaint filed against Judge Ryan, the Court finds sufficient cause to warrant an interim suspension until further disposition of the complaint. Oral hearings on the matter shall commence on the 30th of this month.

Mayflower Reports

In The
Supreme Court of Mayflower

ORDER LIST: SATURDAY, SEPTEMBER 6, 2025

02-21 IN RE S. RES. 97

The petition for a writ of certiorari is *granted*.

The judgment is vacated, and the case is remanded to the District Court for Clark County for further consideration.

September 8, 2025

In The
Supreme Court of Mayflower

ORDER LIST: SATURDAY, SEPTEMBER 6, 2025

02-32 PEOPLE OF CLARK COUNTY v. APC2011

Probable jurisdiction is noted.

Petitioners and Respondents are allowed until Sunday, September 14 at 11:59 PM (ET) to submit Rule 12 and 13 briefs. Further extensions are at the discretion of the Clerk of the Court.

02-33 AEROLIFTS, ET AL. v. SADOIMPACTO

A supplemental brief, limited to the issue of this Court's jurisdiction, shall be filed on or before Sunday, September 14, at 11:59 p.m. (ET).

02-34 T4K3NW v. THEPATRIOTICNERD

The application for stay presented to JUSTICE KRABZ is granted. The issuance of the mandate of the Mayflower District Court for the County of Clark, case no. CV-427-25, is stayed pending the filing and disposition of the petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

In The
Supreme Court of Mayflower

ORDER LIST: SUNDAY, SEPTEMBER 18, 2025

02-35 MAYFLOWER LAW ENFORCEMENT TRAINING INSTITUTE v. CRYSUZKI

The application for stay presented to JUSTICE KRABZ and by him referred to the Court is denied.

JUSTICE CABOT took no part in the consideration of the application.

02-37 FIBLYWIBLY V. BENNETT, ELLIS & MATLOCK, LLC

The application for stay presented to JUSTICE KRABZ is granted. The issuance of the mandate of the Mayflower District Court for the County of Clark, case no. CV-435-25, is stayed pending the filing and disposition of the petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

A response to the application shall be filed on or before Sunday, September 22, 2025, at 11:59 p.m. (ET).

JUSTICE CABOT took no part in the consideration of the application.

September 18, 2025

In The
Supreme Court of Mayflower

ORDER LIST: THURSDAY, SEPTEMBER 18, 2025

02-37 FIBLYWIBLY V. BENNETT, ELLIS & MATLOCK

The application for stay presented to JUSTICE KRABZ is granted. The issuance of the mandate of the Mayflower District Court for the County of Clark, case no. CV-435-25, is stayed pending the filing and disposition of the petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

A response to the application shall be filed on or before Sunday, September 22, 2025, at 11:59 p.m. (ET).

JUSTICE CABOT took no part in the consideration of the application.

In The
Supreme Court of Mayflower

ORDER LIST: THURSDAY, OCTOBER 9, 2025

02-37 FIBLYWIBLY V. BENNETT, ELLIS & MATLOCK

The petitioner, having failed to submit a timely petition for a writ of certiorari, the case is dismissed pursuant to S. Ct. R. 32.

02-37 FIBLYWIBLY V. BENNETT, ELLIS & MATLOCK

The application for an emergency stay entered by JUSTICE KRABZ is dissolved. The time for filing having expired, no writ shall issue.

02-39

STATE OF MAYFLOWER V. EXTRASAMM, ET. AL.

02-40

The petition for a writ of certiorari is *granted*.

02-41

The questions presented numbered from 1 through 4 in the petition are *denied*.

The Court reformulates the question presented as follows; “Is the current framework of enforcement in relation to the death penalty unconstitutional?”

Petitioners and Respondents are allowed until 17/10/2025 to Rule 12 and 13 briefs. Further extensions are at the discretion of the Clerk.

02-40 IN RE JAMESGARDAI

Probable jurisdiction is *noted*.

Petitioners are allowed until 17/10/25 to submit a brief on the merits in accordance with the Rules. Further extensions are at the discretion of the Clerk.

October 9, 2025

02-41 CHARLESLXV V. ORANGEBEAR22, ET. AL.

The petition for inherent jurisdiction review is *granted*.

02-42 BOB78711NEW V. STATE OF MAYFLOWER

The petition for a writ of prohibition is *denied*. Conversely, the dual petition for a writ of mandamus is also denied.

In The
Supreme Court of Mayflower

ORDER LIST: MONDAY, NOVEMBER 3, 2025

02-28 IN RE S. RES. 97

The Court approves the proposed constitutional amendment by majority; pursuant to Art. XIV and Art. XI, §2 & Art. IX, §3, the Secretary of State shall prepare and transmit the ballot title to the Mayflower Electoral Commission, which is notified to place the measure on the ballot and conduct a statewide referendum at the next available election.

02-43 IN RE ADVISORY OPINION (RECESS APPTS.)

The Court declines to issue an advisory opinion on the recess appointments question; the request does not meet the requirements of Art. X, §9.

02-45 IN RE TOBYRULLES4568

The petition for a writ of certiorari is *denied*.

02-46 IN RE MATTHEWSANDRINGHAM

The petition for a writ of certiorari is *denied*.

02-47 VOYNC V. STATE OF MAYFLOWER I

The application for an emergency stay is *denied*.
The petition for a writ of mandamus is *denied*.

02-47 VOYNC V. STATE OF MAYFLOWER II

The petition for a writ of prohibition is *denied*. The petition for a writ of mandamus is *denied*.

November 9, 2025

In The Supreme Court of Mayflower

ORDER LIST: SUNDAY, NOVEMBER 9, 2025

02-49 TOMSKIPETSKI5 V. STATE OF MAYFLOWER

The application for stay and petition for a writ of certiorari are denied. JUSTICE STICKZA would grant the petition for a writ of certiorari.

Statement of JUSTICE CABOT, respecting the denial of certiorari.

Petitioner asks us to rescue him from a contempt citation. But only days ago, we made clear—again—that contempt rulings are reviewed for abuse of discretion, a standard so high that only the rarest contemnor ever clears it. We said it bluntly: “[u]nless a contempt citation penalises a *de minimis* act, it will almost never be reviewable for abuse of discretion.” *In re JamesGardai*, 2 Mayf. ____, ____ (2025) (slip op., at 2); see also *In re Contempt of Shah_Khaled*, 2 Mayf. ____ (2025) (per curiam). Nothing in this record suggests the contempt ruling was “. . . so manifestly unreasonable that no reasonable judge could have come to the same conclusion.” *State of Mayflower v. ISpilledMyTacos*, 2 Mayf. ____, ____ (2025) (slip op., at 2). In short, there is no reason to grant review other than to simply repeat what we have already said.

Petitioner clings to the notion that a statute limits the court’s contempt power. But any statute attempting to shackle the judiciary’s inherent authority is presumptively unconstitutional. As I previously wrote: “[w]e retain unilateral and ultimate authority over the scope of our contempt power, for it is inherently ours, not [the legislature’s].” *Ex parte SinisterInfernal*, 2 Mayf. ____, ____ (2025) (Cabot, J., concurring) (slip op., at 6). Judge Bommies therefore could not have trespassed a statutory limit that the legislature had no power to impose. A \$9,750 fine for insulting and offensive conduct is not excessive—it is accountability. And contempt is not a gentle reminder; as we reaffirmed in *Gardai*, contempt is punitive.

When we deny review, the message is usually obvious: the argument lacks merit, and we are not in the business of rewriting settled law just to entertain a meritless appeal. Therefore, I concur in the denial of

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certiorari. just to entertain a meritless appeal. Therefore, I concur in the denial of certiorari.

November 11, 2025

In The
Supreme Court of Mayflower

ORDER LIST: TUESDAY, NOVEMBER 11, 2025

02-52 IN RE NUKHZ

The application for stay presented to THE CHIEF JUSTICE and by him referred to the Court is granted. The issuance of the order of the Mayflower District Court for the County of Clark, case No. CR-163-25, is stayed pending the filing and disposition of the petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

In The
Supreme Court of Mayflower

ORDER LIST: TUESDAY, NOVEMBER 11, 2025

02-51 IN RE SENATE RESOLUTION 129

The request for an advisory opinion is denied.

Statement of JUSTICE KHALED, respecting the denial of the request for an advisory opinion.

The question posed by our sister branch is if attending a legislative session over Discord satisfies the “constitutional requirement” of attending a session, or whether attendance is recognized only for in-game sessions. This question, like this sentence, is redundant.

This “issue” may have carried more weight if it shed light on the problem it is alluding to—that is, if the “in-person” requirement under Article IV, Section 8 of the Constitution is satisfied by attending a legislative session conducted over Discord. The Senate’s request, however, makes no mention of this underlying concern, leaving the Court to infer from an unbounded set of feasible interpretations. Instead, the Court is left with a question that is half internal legislative procedure, and half constitutional interpretation, and wholly anything but important.

Given the Senate’s refusal to ask an unambiguous question, I concur in the denial of the request for an advisory opinion.

NOMADITY, J., took no part in the consideration or decision of this matter.

November 17, 2025

In The
Supreme Court of Mayflower

ORDER LIST: MONDAY, NOVEMBER 17, 2025

02-52 NUKHZ V. STATE OF MAYFLOWER

The petition for a writ of certiorari is denied. JUSTICE NOMADITY took no part in the consideration or decision of this petition,

In The
Supreme Court of Mayflower

ORDER LIST: FRIDAY, DECEMBER 5, 2025

02-54 LETI v. BIGHALOFAN117

The application for stay presented to THE CHIEF JUSTICE is granted. The issuance of the order of the Mayflower District Court for the County of Clark, case no. CV-517-25, is stayed pending the filing and disposition of the petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

02-55 IN RE SADOIMPACTO

The issuance of the order of the Mayflower District Court for the County of Clark, case no. CV-532-25, is stayed pending the disposition of the appeal. Should the consideration of the appeal be denied, this stay shall terminate automatically. In the event the consideration of the appeal is granted, the stay shall terminate upon the sending down of the judgment of this Court.

December 10, 2025

In The
Supreme Court of Mayflower

ORDER LIST: WEDNESDAY, DECEMBER 10, 2025

02-56 IN RE NPZ_V

The appeal is *dismissed* for want of jurisdiction.

In The
Supreme Court of Mayflower

ORDER LIST: FRIDAY, DECEMBER 22, 2025

02-58 DEVSTRIOUS V. STATE OF MAYFLOWER

The application for a stay presented to JUSTICE CABOT is *granted*.

The issuance of the order of the Mayflower District Court for the County of Clark, case CR-157-25, is stayed pending disposition the filing and disposition of the petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, the stay shall be terminated automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon sending down the judgment of this Court.

December 22, 2025

In The
Supreme Court of Mayflower

ORDER LIST: FRIDAY, DECEMBER 22, 2025

02-58 DEVSTRIIOUS V. STATE OF MAYFLOWER

The application for a stay presented to JUSTICE CABOT is *granted*.

The issuance of the order of the Mayflower District Court for the County of Clark, case CR-157-25, is stayed pending disposition the filing and disposition of the petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, the stay shall be terminated automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon sending down the judgment of this Court.

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In The
Supreme Court of Mayflower

ORDER LIST: MONDAY, DECEMBER 24, 2025

02-54 LETI v. BIGHALOFAN117

The petition for a writ of certiorari is *granted*.

The judgment is vacated, and the case is remanded to the Mayflower District Court for the County of Clark for further consideration.

JUSTICE MORALE took no part in the consideration or decision of the petition.

02-57 DEVSTRIIOUS v. STATE OF MAYFLOWER

The petition for a writ of certiorari is *granted*.

Petitioners and Respondents are allowed until January 5, 2026, at 8:00 AM E.T. to submit Rule 12 and Rule 13 briefs. Further extensions are at the discretion of the Clerk of the Court.

02-60 STATE OF MAYFLOWER v. ERICTHE_UNLEGEND-
ARY

The appeal is *dismissed* for want of jurisdiction.